The Corporation of the Town of Ajax

COUNCIL

Monday, January 23, 2023, 7:00 p.m.
Electronic Meeting
65 Harwood Avenue South

AGENDA

Alternative formats available upon request by contacting:
accessibility@ajax.ca or 905-619-2529 ext. 3347

Electronic Meeting: In-person attendance is not permitted at this meeting of Council. This meeting will be live streamed for viewing at www.ajax.ca/live. Electronic participation is permitted pursuant to Council's Procedure By-law. Questions regarding items on the meeting agenda may be submitted for Council's consideration no later than 12pm on January 23, 2023, by e-mail to clerks@ajax.ca.

Online Agenda: Anything in **blue** denotes an attachment/link. By clicking the links on the agenda page, you can jump directly to that section of the agenda.

1. Call to Order & Acknowledgement of Traditional Treaty Lands

2. Disclosure of Pecuniary Interest

3. Adoption of Minutes

3.1.	Regular Meeting	**December 12, 2022**	4
3.2.	Special Meeting	**January 5, 2023**	10
3.3.	Closed Meeting	January 5, 2023	circulated separately
3.4.	Special Meeting	**January 10, 2023**	12
3.5.	Closed Meeting	January 10, 2023	circulated separately

4. Question Period

5. Delegations, Presentations, and Public Meetings

5.1.	Delegation & Proclamation	**Durham Region Hospice Awareness Day** ~Eva Reti, Chair-Durham Region Hospice-Whitby, Chair-VON Durham Hospice Services
5.2.	Presentation	**Recognition of Mixed Ability Oshawa Vikings** ~Mayor Collier

5.3. Presentation **2023 Allocations – Ajax Partnership Fund**
~Kassandra Cruciano, Senior Advisor, Grants, Partnerships & Strategic Initiatives

6. Correspondence 14

7. Reports

7.1. Community Affairs & Planning Committee

7.1.1. **Community Affairs & Planning Committee, January 9, 2023** 75

7.2. General Government Committee

None

7.3. Summary of Advisory Committee Activities, January, 2023

None

7.4. Departmental Reports

7.4.1. **CAO-2023-01: 2023 Allocations – Ajax Partnership Fund**
S. Baker, Chief Administrative Officer / K. Cruciano, Senior Advisor, Grants, Partnerships & Strategic Initiatives 77

7.4.2. **FIN-2023-01: 2023 Financial Sustainability Plan Reserve Policy Updates**
D. Valentim, Director of Finance/Treasurer 84

8. Regional Councillors' Reports

9. Business Arising From Notice of Motion

9.1. **Accelerating Development of Thousands of New Housing Units**
Mayor Collier / Regional Councillor Crawford 118

9.2. **Securing Canada's $1 Billion Investment in a Strengthened Freshwater Action Plan**
Mayor Collier / Regional Councillor Dies 122

9.3. **No Mow May**
Councillor Bower / Regional Councillor Dies 124

9.4. **Joe Dickson Park**
Councillor Henry / Regional Councillor Lee 125

10. By-Laws

None

11. Notice of Motion

12. New Business/Announcements

13. Confirming By-Law **03-2023** 126

14. Adjournment

DRAFT MINUTES – SUBJECT TO APPROVAL

Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Monday, December 12, 2022 immediately following the General Government Committee Meeting

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		J. Dies
		S. Lee
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 2:51 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of the Minutes

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the following minutes of previous Council meetings be adopted:

- Regular Meeting of September 26, 2022;
- Special Meeting of November 8, 2022;
- Inaugural Meeting of November 28, 2022; and
- Special Meeting of November 29, 2022.

CARRIED

4. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Jason McWilliam, Manager of Legislative Services/Deputy Clerk, noted that no questions had been received regarding the contents of the meeting agenda.

5. Delegations and Presentations

None

6. Correspondence

Mayor Collier reviewed the information contained in Item 6.3 (The Regional Municipality of Durham – Envision Durham – Growth Management Study – Phase 2 – Draft Settlement Area Boundary Expansions and Area Municipal Growth Allocations) and noted that the proposed settlement area boundary expansions include all northeast Pickering.

DRAFT

Moved by: J. Dies
Seconded by: S. Lee

That the report dated December 12, 2022 containing Items of Correspondence be received for information.

CARRIED

7. Reports

7.1. Community Affairs & Planning Committee Report

7.1.1 Community Affairs & Planning Committee, December 5, 2022

Moved by: J. Dies
Seconded by: N. Henry

That the Community Affairs & Planning Committee Report dated December 5, 2022, be adopted.

CARRIED

7.2. General Government Committee Report

7.2.2 General Government Committee, December 12, 2022

Moved by: L. Bower
Seconded by: S. Lee

That the Resolutions of the General Government Committee Meeting dated December 12, 2022, be ratified.

CARRIED

7.3 Summary of Advisory Committee Activities

None

7.4 Departmental Reports

None

8. Regional Councillors' Report

Regional Council Members reviewed appointments and nominations to various boards/committees at the Region for the 2022-2026 Term of Council.

Moved by: M. Crawford
Seconded by: J. Dies

That the Regional Councillors' Reports of December 12, 2022 be received for information.

CARRIED

9. Business Arising from Notice of Motion

9.1 Council Participation in OMERS Pension Plan

Regional Councillor Lee and Regional Councillor Crawford introduced the motion and reviewed its contents. Council Members asked questions regarding financial impacts should a Councillor opt out of the OMERS Plan, Year's Maximum Pensionable Earnings (YMPE) limits, and town contributions. Samantha Paterson, GR & Strategic Initiatives Coordinator, responded to questions from Council Members.

Moved by: S. Lee
Seconded by: M. Crawford

DRAFT

WHEREAS the Ontario Municipal Employees Retirement System (OMERS) is a defined benefit pension plan and provides a guaranteed stream of income in retirement;

AND WHEREAS the OMERS Plan pension can grow into an important financial asset and play a key role in financial and retirement security;

AND WHEREAS both the employee and employer contribute equal amounts to the OMERS plan, increasing the total contribution being invested;

AND WHEREAS the Council Members of Whitby, Clarington and Uxbridge participate in the OMERS program and the Region of Durham provides the option to do so for Members of Regional Council;

AND WHEREAS the Town of Ajax currently contributes 10% of a Council Member's base salary to a personal Registered Retirement Savings Plan (RRSP) as a pension compensation benefit;

AND WHEREAS if members of Council were enrolled in the OMERS plan, the Town would contribute 9% of earnings up to the Year's Maximum Pensionable Earnings (YMPE) earnings limit and 14.6% of earnings over the YMPE limit, with Members being required to match the Town's contributions;

AND WHEREAS existing council members can individually choose to join OMERS at the effective date of enrolment and members who decline can join OMERS at any point in the future provided they continue to be eligible;

NOW THEREFORE BE IT RESOLVED THAT:

1. The Manager of HR Services be directed to contact OMERS indicating Council's intent to participate in the OMERS Plan and obtain the necessary information and documentation to commence the process;

2. Staff be directed to provide the option to replace Council's Registered Retirement Savings Plan (RRSP) benefit with participation in the OMERS Plan; and

3. The Town continue to provide the Registered Retirement Savings Plan (RRSP) benefit to current members of Council who opt out of the OMERS Plan.

Amendment

Moved by: L. Bower
Seconded by: N. Henry

That recommendation #3 be amended to read as follows:

> The Town continue to provide, for those members who opt out of the OMERS Plan, the Registered Retirement Savings Plan (RRSP) 10% benefit to members of Council and that the Mayor receive 9% of earnings up to the YMPE earnings limit and 14.6% of earnings over the YMPE limit.

CARRIED

Main Motion as Amended

Moved by: S. Lee
Seconded by: M. Crawford

WHEREAS the Ontario Municipal Employees Retirement System (OMERS) is a defined benefit pension plan and provides a guaranteed stream of income in retirement;

AND WHEREAS the OMERS Plan pension can grow into an important financial asset and play a key role in financial and retirement security;

AND WHEREAS both the employee and employer contribute equal amounts to the OMERS plan, increasing the total contribution being invested;

AND WHEREAS the Council Members of Whitby, Clarington and Uxbridge participate in the OMERS program and the Region of Durham provides the option to do so for Members of Regional Council;

DRAFT

AND WHEREAS the Town of Ajax currently contributes 10% of a Council Member's base salary to a personal Registered Retirement Savings Plan (RRSP) as a pension compensation benefit;

AND WHEREAS if members of Council were enrolled in the OMERS plan, the Town would contribute 9% of earnings up to the Year's Maximum Pensionable Earnings (YMPE) earnings limit and 14.6% of earnings over the YMPE limit, with Members being required to match the Town's contributions;

AND WHEREAS existing council members can individually choose to join OMERS at the effective date of enrolment and members who decline can join OMERS at any point in the future provided they continue to be eligible;

NOW THEREFORE BE IT RESOLVED THAT:

1. The Manager of HR Services be directed to contact OMERS indicating Council's intent to participate in the OMERS Plan and obtain the necessary information and documentation to commence the process;

2. Staff be directed to provide the option to replace Council's Registered Retirement Savings Plan (RRSP) benefit with participation in the OMERS Plan; and

3. The Town continue to provide, for those members who opt out of the OMERS Plan, the Registered Retirement Savings Plan (RRSP) 10% benefit to members of Council and that the Mayor receive 9% of earnings up to the YMPE earnings limit and 14.6% of earnings over the YMPE limit.

CARRIED

Recorded Vote

In Favour: Regional Councillor Crawford, Regional Councillor Dies, Councillor Henry, Regional Councillor Lee, Councillor Tyler Morin, Councill Bower, Mayor Collier

Opposed: None

9.2 **Harmonizing Regional Councillor Remuneration**

Regional Councillor Crawford and Regional Councillor Lee introduced the motion and reviewed its contents. Mayor Collier noted that the motion is administrative in nature and has no impact on the taxpayer.

Moved by: M. Crawford
Seconded by: S. Lee

WHEREAS Ajax regional councillors are paid for their local duties by the Town of Ajax and for their Regional Council duties by the Regional Municipality of Durham;

AND WHEREAS by receiving separate payments, regional councillors may be subject to higher taxation deductions on both Canadian Pension Plan and Employment Insurance contributions, which are subject to maximum annual contribution ceilings;

AND WHEREAS By-law Number 42-2022 of the Regional Municipality of Durham gives municipalities the opportunity to enter into a joint services agreement with the Region for the harmonization of councillors' remuneration and benefits. Under the agreement, the Region reimburses the municipality for the cost of providing remuneration and benefits on a quarterly basis;

AND WHEREAS Whitby, Clarington, and Uxbridge currently participate in payment harmonization with the Region;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax staff implement all measures necessary to administer the harmonization of the Regional Remuneration in accordance with By-law Number 42-2022 of the Regional Municipality of Durham.

CARRIED

DRAFT

9.3 **Residential Parking Permit Program**

Regional Councillor Lee and Councillor Henry introduced the motion and reviewed its contents. Council Members asked if the March 2023 timeline is attainable. Geoff Romanowski, Director of Planning & Development Services, responded to the question from Council Members.

Moved by: S. Lee
Seconded by: N. Henry

WHEREAS a Residential Parking Permit (RPP) Feasibility Study was completed in 2008 to examine the feasibility of implementing a RPP program in the Town of Ajax;

AND WHEREAS the Council of the day did not vote in favour of implementing the RPP program on the recommendation of staff at the time;

AND WHEREAS the makeup and built form of our community has changed dramatically since 2008, including new developments that have been built and are planned for the future, and an increase in multi-family homes with multiple vehicles requiring increased parking;

AND WHEREAS some residents of Ajax have expressed concerns to members of Council regarding a perceived lack of residential parking supply, particularly in Ajax's newer communities;

NOW THEREFORE BE IT RESOLVED THAT:

1. Staff be directed to present a report to Council or the appropriate Standing Committee on the cost, timeline, scope and potential funding sources for an updated Town-wide Residential Parking Permit (RPP) Study by no later than April 2023; and

2. The RPP Study shall include, at minimum, an examination of existing on-street parking supply, potential scope of the program, estimated costs and cost recovery mechanisms for the Town, integration with the Town's existing on-street parking programs and by-laws, estimated participation rates of residents and visitors, and estimated timelines for development and implementation.

CARRIED

10. By-laws

Moved by: L. Bower
Seconded by: J. Dies

That By-law numbers 70-2022 to 77-2022 and 80-2022 to 84-2022 be read a first, second and third time and passed.

CARRIED

11. By-laws Imposed by the Ontario Land Tribunal

Council Members noted that By-law numbers 78-2022 and 79-2022 have been imposed by way of Order by the Ontario Land Tribunal.

Council Members asked questions regarding changes to agenda structure and appeal rights. Nicole Cooper, Director of Legislative & Information Services/Clerk and Sean McCullough, Supervisor Policy, Planning & Research, responded to questions from Council Members.

12. Notice of Motion

None

13. New Business - Notices & Announcements

Council Members wished everyone a safe and happy holiday season. Mayor Collier thanked members of Council and staff for their hard work and dedication.

14. Confirming By-Law

Moved by: S. Lee
Seconded by: L. Bower

That By-law number 85-2022 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on December 12, 2022, be read a first, second and third time and passed.

CARRIED

15. Adjournment

Moved by: N. Henry
Seconded by: M. Crawford

That the December 12, 2022 meeting of the Council of the Town of Ajax be adjourned (3:34 p.m.)

CARRIED

_____
Mayor

_____
D-Clerk

DRAFT

Draft Minutes of the Special Meeting of Council of the Corporation of the Town of Ajax Held Electronically on Thursday, January 5, 2023 at 9:00 a.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order

Mayor Collier called the meeting to order at 9:03 a.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

Closed Session (9:05 a.m.)

3. Authority to Hold a Closed Session

Moved by: S. Lee
Seconded by: R. Tyler Morin

That Council convene to a Closed Session pursuant to Section 239 (3.1) of the *Municipal Act, 2001,* as amended, for the purpose of education and training of members.

CARRIED

3.1 Training & Education: Everything DiSC Workplace

3.2 Training & Education: Team Building

Open Meeting (4:04 p.m.)

4. Confirming By-law

Moved by: N. Henry
Seconded by: R. Tyler Morin

That By-law number 01-2023 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its Special meeting held on January 5, 2023 be read a first, second and third time and passed.

CARRIED

5. Adjournment

Moved by: M. Crawford
Seconded by: L. Bower

That the January 5, 2023 Special meeting of the Council of the Town of Ajax be adjourned. (4:05 p.m.)

CARRIED

DRAFT

_____
Mayor

_____
D-Clerk

DRAFT

Draft Minutes of the Special Meeting of Council of the Corporation of the Town of Ajax Held Electronically on Tuesday, January 10, 2023 at 2:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order

Mayor Collier called the meeting to order at 2:01 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

Closed Session (2:03 p.m.)

3. Authority to Hold a Closed Session

Moved by: R. Tyler-Morin
Seconded by: S. Lee

That Council convene to a Closed Session pursuant to Section 239 (2) (b) of the Municipal Act, 2001, as amended, to discuss personal matters about an identifiable individual, including municipal or local board employees.

CARRIED

3.1 Confidential Staff Matter

Rise from Closed Session

Moved by: S. Lee
Seconded by: R. Tyler-Morin

That Council rise from closed session and resume the open meeting.

CARRIED

Open Meeting (3:03 p.m.)

4. Confirming By-law

Moved by: L. Bower
Seconded by: R. Tyler-Morin

That By-law number 02-2023 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its Special meeting held on January 10, 2023 be read a first, second and third time and passed.

CARRIED

5. Adjournment

Moved by: M. Crawford
Seconded by: N. Henry

DRAFT

That the January 10, 2023 Special meeting of the Council of the Town of Ajax be adjourned. (3:05 p.m.)

CARRIED

_____
Mayor

_____
D-Clerk

DRAFT

TOWN OF AJAX
REPORT TO COUNCIL

TO: Mayor and Members of Council

FROM: N. Cooper, Clerk

DATE: January 23, 2023

SUBJECT: Items of Correspondence

The following items of correspondence are attached for Council's information:

Durham Region Municipalities

1. **Town of Ajax:** Proclamations issued by the Mayor's Office 16

2. **The Regional Municipality of Durham** – Census of Population – Indigenous Peoples and Housing Portrait (Release 5) 17
   - **Background Material:** Report #2022-INFO-98 (page 3)

3. **The Regional Municipality of Durham** – Monitoring of Growth Trends 18
   - **Background Material:** Report #2022-INFO-97 (page 3)

4. **The Regional Municipality of Durham** – 2021 Census of Population – Citizenship and Immigration, Ethnocultural and Religious Composition, Mobility and Migration (Release 6) .. 19
   - **Background Material:** Report #2022-INFO-102 (page 25)

5. **The Regional Municipality of Durham** – Durham Region's Response to the Provincial Consultation on Proposed Amendments to the Greenbelt Plan 20
   - **Background Material:** Report #2022-COW-31

6. **The Regional Municipality of Durham** – Implications of Bill 23 on the Region of Durham . 22
   - **Background Material:** Report #2022-COW-33

7. **The Regional Municipality of Durham** – Resolution regarding the Need for and Administrative Penalties Regulation under the Resource Recovery and Circular Economy Act (RRCEA) 24

8. **The Regional Municipality of Durham** – Resolution regarding the Expansion of a Slow Down Move Over Requirement to all Roadside Workers 26

9. **The Regional Municipality of Durham** – 2023 Interim Regional Property Tax Levy 28
   - **Background Material:** Report #2022-F-21

10. **The Regional Municipality of Durham** – Ready Set Future: Five Year Economic Development and Tourism Strategy and Action Plan 31
    - **Background Material:** Report #2022-EDT-15

11. **The Regional Municipality of Durham** – Appointments to the Central Lake Ontario Conservation Authority 33

12. **The Regional Municipality of Durham** – Appointments to the Toronto and Region Conservation Authority 35

13. **City of Pickering** – Amendments to Bill 3, Strong Mayors, Building Homes Act, 2022 36

14. **Municipality of Clarington** – More Homes Built Faster Act, 2022 (Bill 23); Comments 41

15. **Municipality of Clarington** – Bill 109, More Homes for Everyone Act, 2022 and Bill 13, Support People and Business Act, 2021 – a Recommended Path Forward for the Development Process 44

16. **City of Oshawa** – City Comments on Proposed Changes to the Greenbelt Plan, Greenbelt Area Boundary Regulation and Oak Ridges Moraine Conservation Plan (All Wards) 46
    - **Background Material:** Report #ED-22-217

Other Municipalities, Organizations and Individuals

17. **Municipality of Magnetawan** – Bill 23, More Homes Built Faster Act 2022 48

18. **Ontario's Big City Mayors** – Maximizing the Streamline Development Approval Fund 49

19. **Town of Newmarket** – Bill 23, More Homes Built Faster Act, 2022 56

20. **Municipality of Tweed** – Natural Gas Prices 58

21. **Municipality of North Perth** – Bill 23 More Homes Built Faster Act 59

22. **Northumberland County** – Bill 23, More Homes Built Faster Act, 2022 63

23. **City of Cambridge** – Opposition to Bill 23, More Homes Built Faster Act 65

24. **City of Kingston** – New Motion 2 – Bill 23, More Homes Built Faster Act, 2022 67

25. **Ministry of Municipal Affairs and Housing** – More Homes Built Faster Act, 2022 70

26. **County of Brant** – Amendments to the Greenbelt Plan 72
    - **Background Material:** Report #RPT-0711-22 (page 313 – 448)

N. Cooper
Clerk

MEMO

TO: Mayor and Members of Council

FROM: Linsey Joseph

DEPARTMENT: Legislative and Information Services - Legislative Services

SUBJECT: PROCLAMATIONS ISSUED BY THE MAYOR'S OFFICE

DATE: January 23, 2023

The following Proclamations have been approved during the month of January 2023.

Name of Person/Group(s)	Title of Proclamation	Date(s) Proclaimed
Durham Region Hospice	Durham Region Hospice Awareness Day	January 29, 2022

Linsey Joseph
Legislative & Information Services
/CC* flag

From:	Margret Rzymski
To:	Clerks; Fernando.Lamanna@Brock.ca; ClerksExternalEmail; Mary Medeiros; Clerks Web Email; mail@scugog.ca; Debbie Leroux; clerk@whitby.ca
Subject:	Report #2022-INFO-98 2021 Census of Population – Indigenous Peoples and Housing Portrait (Release 5)
Date:	Monday, December 12, 2022 9:23:31 AM
Attachments:	image003.png 2022-INFO-98 2021 Census of Population - Indigenous Peoples and Housing Portrait (Release 5).pdf

Caution: This email originated from outside of the organization. DO NOT click links or open attachments unless you recognize the sender and know the content is safe.

Good morning,

Please find attached Commissioners Report #2022-INFO-98 2021 Census of Population – Indigenous Peoples and Housing Portrait (Release 5), dated December 9,2022 for your information.

Thank you,

Margret

Margret Rzymski | Administrative Assistant
Planning and Economic Development Department
The Regional Municipality of Durham
Margret.Rzymski@durham.ca | 905-668-7711 extension 2564 | durham.ca

My pronouns are she/her

THIS MESSAGE IS FOR THE USE OF THE INTENDED RECIPIENT(S) ONLY AND MAY CONTAIN INFORMATION THAT IS PRIVILEGED, PROPRIETARY, CONFIDENTIAL, AND/OR EXEMPT FROM DISCLOSURE UNDER ANY RELEVANT PRIVACY LEGISLATION. No rights to any privilege have been waived. If you are not the intended recipient, you are hereby notified that any review, re-transmission, dissemination, distribution, copying, conversion to hard copy, taking of action in reliance on or other use of this communication is strictly prohibited. If you are not the intended recipient and have received this message in error, please notify me by return e-mail and delete or destroy all copies of this message.

From:	Margret Rzymski
To:	CE-Communications@lhins.on.ca; 3309@drps.ca; CHRISTINE NANCEKIVELL; daniel.carlin@dcdsb.ca; ladouceurm@csviamonde.ca; kevhickey@pvnccdsb.on.ca; planning_info@kprdsb.ca; planification@cscmonavenir.ca; Clerks; Fernando.Lamanna@Brock.ca; ClerksExternalEmail; Mary Medeiros; Clerks Web Email; mail@scugog.ca; Debbie Leroux; clerk@whitby.ca
Subject:	Report #2022-INFO-97 Monitoring of Growth Trends
Date:	Monday, December 12, 2022 10:40:05 AM
Attachments:	image003.png 2022-INFO-97 Monitoring of Growth Trends.pdf
Importance:	High

Caution: This email originated from outside of the organization. DO NOT click links or open attachments unless you recognize the sender and know the content is safe.

Good morning,

Please find attached Commissioners Report **#2022-INFO-97 Monitoring of Growth Trends**, dated December 2, 2022 for your information, disregard the previous email that did not include the attachments.

Thank you,

Margret

Margret Rzymski | Administrative Assistant
Planning and Economic Development Department
The Regional Municipality of Durham
Margret.Rzymski@durham.ca | 905-668-7711 extension 2564 | durham.ca

My pronouns are she/her

THIS MESSAGE IS FOR THE USE OF THE INTENDED RECIPIENT(S) ONLY AND MAY CONTAIN INFORMATION THAT IS PRIVILEGED, PROPRIETARY, CONFIDENTIAL, AND/OR EXEMPT FROM DISCLOSURE UNDER ANY RELEVANT PRIVACY LEGISLATION. No rights to any privilege have been waived. If you are not the intended recipient, you are hereby notified that any review, re-transmission, dissemination, distribution, copying, conversion to hard copy, taking of action in reliance on or other use of this communication is strictly prohibited. If you are not the intended recipient and have received this message in error, please notify me by return e-mail and delete or destroy all copies of this message.

From:	Margret Rzymski
To:	Clerks; Fernando.Lamanna@Brock.ca; ClerksExternalEmail; Mary Medeiros; Clerks Web Email; mail@scugog.ca; Debbie Leroux; clerk@whitby.ca
Subject:	Report #2022-INFO-102 2021 Census of Population – Citizenship and Immigration, Ethnocultural and Religious Composition, Mobility and Migration (Release 6)
Date:	Tuesday, December 20, 2022 12:05:42 PM
Attachments:	image002.png 2022-INFO-102 2021 Census of Population – Citizenship and Immigration (Release 6).pdf

Caution: This email originated from outside of the organization. DO NOT click links or open attachments unless you recognize the sender and know the content is safe.

Good afternoon,

Please find attached Commissioners Report #2022-INFO-102 2021 Census of Population – Citizenship and Immigration, Ethnocultural and Religious Composition, Mobility and Migration (Release 6), dated December 14, 2022 for your information.

Thank you,

Margret

Margret Rzymski | Administrative Assistant
Planning and Economic Development Department
The Regional Municipality of Durham
Margret.Rzymski@durham.ca | 905-668-7711 extension 2564 | durham.ca

My pronouns are she/her

THIS MESSAGE IS FOR THE USE OF THE INTENDED RECIPIENT(S) ONLY AND MAY CONTAIN INFORMATION THAT IS PRIVILEGED, PROPRIETARY, CONFIDENTIAL, AND/OR EXEMPT FROM DISCLOSURE UNDER ANY RELEVANT PRIVACY LEGISLATION. No rights to any privilege have been waived. If you are not the intended recipient, you are hereby notified that any review, re-transmission, dissemination, distribution, copying, conversion to hard copy, taking of action in reliance on or other use of this communication is strictly prohibited. If you are not the intended recipient and have received this message in error, please notify me by return e-mail and delete or destroy all copies of this message.

The Regional Municipality of Durham

Corporate Services Department –
Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Barb Goodwin
MPA, CPA/CGA, BComm, CPM, CMMIII
Commissioner of Corporate Services

December 21, 2022

The Honourable Steve Clark
Minister of Municipal Affairs and Housing
17th Floor
777 Bay Street
Toronto ON M5G 2E5

Dear Minister Clark:

RE: Durham Region's Response to the Provincial Consultation on Proposed Amendments to the Greenbelt Plan, ERO Postings #019-6216 and #-019-6238, File D12-01 (2022-COW-31), Our File: D00

Council of the Region of Durham, at its meeting held on December 21, 2022, adopted the following recommendations of the Committee of the Whole, as amended:

"A) That the letter contained in Attachment #2 to Report #2022-COW-31 of the Chief Administrative Officer be endorsed as the Region's formal comments on the proposed amendments to the Greenbelt Plan, ERO postings #019-6216 and #019-6238;

B) That a copy of Report #2022-COW-31 be sent to the Minister of Municipal Affairs and Housing, the area municipalities and the MPPs in Durham;

C) Council ask that the province return environmental and Greenbelt protections to the Duffins Rouge Agriculture Preserve; and

D) That Council ask that the province return environmental and Greenbelt protections to all of the areas being removed."

Please find enclosed a copy of Report #2022-COW-31 for your information.

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/ks

Attachment

If you require this information in an accessible format, please contact 1-800-372-1102 extension 2097.

c: Nicole Cooper, Clerk, Town of Ajax
Fernando Lamanna, Clerk, Township of Brock
June Gallagher, Clerk, Municipality of Clarington
Mary Medeiros, City Clerk, City of Oshawa
Susan Cassel, Clerk, City of Pickering
Becky Jamieson, Clerk, Township of Scugog
Debbie Leroux, Clerk, Township of Uxbridge
Chris Harris, Clerk, Town of Whitby
Patrice Barnes, MPP (Ajax)
Todd McCarthy, MPP (Durham)
Laurie Scott, MPP (Haliburton/Kawartha Lakes/Brock)
David Piccini, MPP (Northumberland/Peterborough South)
Jennifer French, MPP (Oshawa)
Peter Bethlenfalvy, MPP (Pickering/Uxbridge)
Lorne Coe, MPP (Whitby)
E. Baxter-Trahair, Chief Administrative Officer
B. Bridgeman, Commissioner of Planning and Economic Development
J. Presta, Commissioner of Works

The Regional Municipality of Durham

Corporate Services Department –
Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Barb Goodwin
MPA, CPA/CGA, BComm, CPM, CMMIII
Commissioner of Corporate Services

December 21, 2022

The Honourable Doug Ford
Premier of Ontario
Room 281
Legislative Building, Queen's Park
Toronto, ON M7A 1A1

Dear Premier Ford:

RE: Implications of Bill 23 on the Region of Durham (2022-COW-33), Our File: D00

Council of the Region of Durham, at its meeting held on December 21, 2022, adopted the following recommendations of the Committee of the Whole:

"A) That Council endorse staff-level feedback and recommendations on Bill 23 as provided in Report #2022-INFO-93 of the Chief Administrative Officer;

B) That the Province of Ontario be requested to pass further legislation to revise Bill 23, the More Homes Built Faster Act, 2022 in light of the unintended property tax implications that it will impose on existing and future property taxpayers, and due to the community planning impacts that will affect our communities;

C) That the Province of Ontario be requested to engage with all affected municipalities through meaningful dialogue in the spirit of collaboration, to achieve our shared goal of achieving significant increases in housing supply while directly investing in measures to improve housing affordability; and

D) That staff be directed to work with local area municipalities on a communications and public education campaign that details the impacts of Bill 23 on residents in the Region of Durham, with information regarding all property tax increases stemming from Bill 23 being included in the upcoming 2023 and future Regional property tax bills."

Please find enclosed a copy of Report #2022-COW-33 for your information.

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/ks

Attachment

c: The Honourable Steve Clark, Minister of Municipal Affairs and Housing
Nicole Cooper, Clerk, Town of Ajax
Fernando Lamanna, Clerk, Township of Brock
June Gallagher, Clerk, Municipality of Clarington
Mary Medeiros, City Clerk, City of Oshawa
Susan Cassel, Clerk, City of Pickering
Becky Jamieson, Clerk, Township of Scugog
Debbie Leroux, Clerk, Township of Uxbridge
Chris Harris, Clerk, Town of Whitby
E. Baxter-Trahair, Chief Administrative Officer

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Barb Goodwin MPA, CPA/CGA, BComm, CPM, CMMIII
Commissioner of Corporate Services

December 21, 2022

The Honourable David Piccini
Minister of the Environment, Conservation and Parks
5th Floor
777 Bay St.
Toronto, ON M5B 2H7

Dear Minister Piccini,

RE: Resolution regarding the Need for an Administrative Penalties Regulation under the Resource Recovery and Circular Economy Act (RRCEA): E00

Council of the Region of Durham, at its meeting held on December 21, 2022, adopted the following recommendations of the Works Committee:

"Whereas Municipal governments support the Province's implementation of outcomes-based policies to move responsibility for end-of-life management of designated products and packaging to producers who are the most able to affect system change;

And whereas these policies can improve environmental outcomes, provide new jobs and grow Ontario's economy;

And whereas outcomes-based policies require clear consequences for non-compliance that can be administered in an effective and efficient manner;

And whereas Administrative penalties are a cost-effective tool for the regulator to hold polluters accountable, so there is less burden on the courts and taxpayers;

And whereas the Resource Productivity and Recovery Authority does not have Administrative Penalties which is impacting the ability of the regulator to ensure compliance with the regulations under the Resource Recovery and Circular Economy Act, 2016;

And whereas data provided by Resource Productivity and Recovery Authority shows there is a currently a backlog of over 2,000 cases of potential non-compliance and almost 200 known instances of non-compliance;

And whereas the Resource Productivity and Recovery Authority has found battery producers non-compliant for collection accessibility and processing;

And whereas the largest waste diversion program, the Blue Box, sees the first communities transition in a few months, ensuring the Regulator has appropriate enforcement tools to ensure servicing and outcomes are met is critical for a smooth transition for Ontarians;

Now therefore it be resolved that the Regional Municipality of Durham calls on the Provincial government to promptly pass an Administrative Penalties regulation under the Resource Recovery and Circular Economy Act, 2016;

And that a copy of this resolution be sent to:

- Durham MPP's
- Association of Municipalities of Ontario (AMO)
- All Durham Local Municipalities
- The Ontario Waste Management Association."

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/sc

c: J. Presta, Commissioner of Works
Association of Municipalities of Ontario (AMO)
All Durham Local Municipalities
Durham MPPs
The Ontario Waste Management Association

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Barb Goodwin MPA, CPA/CGA, BComm, CPM, CMMIII
Commissioner of Corporate Services

December 21, 2022

The Honourable Doug Ford
Premier's Office
Room 281
Legislative Building, Queen's Park
Toronto, ON M7A 1A1

Dear Premier Ford,

RE: Resolution regarding the Expansion of a Slow Down Move Over Requirement to All Roadside Workers: T02

Council of the Region of Durham, at its meeting held on December 21, 2022, adopted the following recommendations of the Works Committee:

"Whereas the Province's Highway Traffic Act currently provides protection to select designated roadside workers (police, paramedics, and tow truck drivers), which requires motorists to slow down and move over when vehicles are stopped alongside the road;

Whereas many roadside workers (e.g., waste and recycling collectors, maintenance workers) are not currently afforded the same protection but work under the same conditions;

And whereas British Columbia passed a Slow Down Move Over law to make it safer for all roadside workers including maintenance workers, utility workers, police, fire, ambulance, tow trucks, Commercial Vehicle Safety Enforcement personnel, land surveyors, animal control workers, garbage collectors and other roadside workers;

And whereas the BC Slow Down Move Over law simplifies the messaging to all residents by requiring motorists to adhere to the requirements for all vehicles stopped alongside the road that have flashing red, blue or yellow lights;

And whereas 30 US states have established 'Slow Down Move Over' laws providing protections for waste collection workers;

And whereas multiple Associations such as the Ontario Waste Management Association, the Ontario Road Builders' Association and the Ontario Good Roads Association have advocated for amendments to Ontario's Highway Traffic Act to include all roadside workers;

Now therefore it be resolved that the Region of Durham calls on the Provincial government to promptly amend the Highway Traffic Act, like the Government of British Columbia already has, to provide the same protections to all roadside workers including waste collection workers.

And that a copy of this resolution be sent to:

- Hon Caroline Mulroney - Minister of Transportation - Ontario Ministry of Transportation
- Durham MPP's
- Association of Municipalities of Ontario (AMO)
- All Durham Local Municipalities
- The Ontario Waste Management Association."

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/sc

c: J. Presta, Commissioner of Works
Hon Caroline Mulroney, Minister of Transportation
Durham MPPs
Association of Municipalities of Ontario (AMO)
All Durham Local Municipalities
The Ontario Waste Management Association

THIS LETTER HAS BEEN FORWARDED
TO THE EIGHT AREA CLERKS

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Barb Goodwin MPA, CPA/CGA, B.Comm, CPM, CMMIII
Commissioner of Corporate Services

December 22, 2022

Nicole Cooper
Clerk
Town of Ajax
65 Harwood Avenue South
Ajax, ON L1S 2H9

Dear Ms. Cooper:

RE: 2023 Interim Regional Property Tax Levy, Our File: F33

Council of the Region of Durham, at its meeting held on December 21, 2022, adopted the following recommendations of the Finance and Administration Committee:

"A) That a 2023 interim regional property tax levy be imposed on the lower-tier municipalities for all property tax classes; and

B) That the amount due from each lower-tier municipality is estimated to be equivalent to 50% of their respective share of the regional property taxes collected in 2022; and

C) That the 2023 interim regional property tax levy be paid by the lower-tier municipalities seven days subsequent to the instalment due dates established by each lower-tier municipality for the collection of their respective interim municipal property taxes; and

D) That the Regional Clerk be requested to advise the lower-tier municipalities of the imposition of the 2023 interim regional property tax levy for all property tax classes; and

E) That approval be granted for the requisite by-law."

Please find enclosed a copy of Report #2022-F-21 and By-law No. 54-2022 for your information.

Alexander Harras

Alexander Harras
Director of Legislative Services & Regional Clerk

AH/nb

Attachment

c: N. Taylor, Commissioner of Finance

If you require this information in an accessible format, please contact Eamonn.Rodgers@durham.ca or call 1-800-372-1102 ext. 3677.

Authority: Report #2022-F-21

By-law Number 54-2022

of The Regional Municipality of Durham

Being a by-law to requisition, on an interim basis, from the lower-tier municipalities before the adoption of the 2023 Regional estimates, a sum equal to fifty percent of the taxes requisitioned for Regional purposes made by the Regional Council against the lower-tier municipalities for all property classes in the year 2022.

Whereas subsection 316(1) of the *Municipal Act, 2001*, S.O. c 25, as amended (the "Act") provides that Regional Council, before the adoption of the estimates for a year, may by by-law requisition a sum from each lower-tier municipality not exceeding the prescribed percentage (or fifty percent if no percentage is prescribed) of the amount that, in the Regional rating by-law for the previous year, was estimated to be raised in the particular lower-tier municipality.

And Whereas subsection 316(2) of the Act provides that a by-law passed under subsection 316(1) may require specified portions of the sum to be paid to the treasurer of the upper-tier municipality on or before specified dates.

Now therefore, the Council of The Regional Municipality of Durham hereby enacts as follows:

1. In the year 2023, before the adoption of the estimates for the year 2023, a requisition be and the same is hereby made against each of the lower-tier municipalities of a sum not exceeding fifty percent of the taxes requisitioned for Regional purposes made by the Regional Council against that lower-tier municipality in the year 2022. The estimate of 2023 interim property tax levies is set out on Schedule 1 hereto forming part of this by-law.

2. The amounts of any requisitions made under paragraph 1 of this by-law shall be deducted from the amounts to be paid by the lower-tier municipalities to the Region under the Regional rating by-law for the year 2023.

3. The date for payment of the sums requisitioned under this by-law shall be seven days subsequent to the instalment due dates established by each lower-tier municipality for the collection of their respective interim municipal property taxes.

4. All sums shall be made payable to the Regional Municipality of Durham and shall be paid to the Regional Treasurer.

This By-law Read and Passed on the 21st day of December 2022.

J. Henry, Regional Chair and CEO

A. Harras, Regional Clerk

Schedule 1

The Regional Municipality of Durham
Estimate of 2023 Regional Interim Property Tax Levies
($,000's)

	Oshawa	Pickering	Ajax	Clarington	Whitby	Brock	Scugog	Uxbridge	Total
First (1st) Installment	39,333	33,276	33,865	24,745	41,001	3,185	6,806	7,837	190,048
Second (2nd) Installment	39,333	33,276	33,865	24,745	41,001	3,185	6,806	7,837	190,048
Total of Installments	**78,666**	**66,552**	**67,730**	**49,490**	**82,002**	**6,370**	**13,612**	**15,674**	**380,096**

Note:

(1) Includes General, Transit and Solid Waste Management Purposes.

(2) Excludes 2022 Supplemental or Omitted Billings and 2022 Municipal Property Assessment Corporation (MPAC) Requests for Reconsiderations decisions and Assessment Review Board (ARB) decisions.

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Barb Goodwin MPA, CPA/CGA, BComm, CPM, CMMIII
Commissioner of Corporate Services

December 28, 2022

Mr. Chuck Thibeault
Executive Director
Central Counties Tourism
P.O. Box 98003
2727 Courtice Road
Courtice, ON L1E 3A0

Dear Mr. Thibeault:

RE: Ready Set Future: Five Year Economic Development and Tourism Strategy and Action Plan (2022-EDT-15), Our File: D02

Council of the Region of Durham, at its meeting held on December 21, 2022, adopted the following recommendations of the Planning & Economic Development Committee:

"A) That the new Economic Development and Tourism Strategy and Action Plan, '2023-2027 Ready Set Future: A PLACE Blueprint for Durham', be endorsed;

B) That a copy of "Ready Set Future" be sent to Durham's Area Municipalities, all members of the Steering Committee, all members of the Durham Economic Development Partnership, Durham's post-secondary institutions, Durham Chambers of Commerce and the Boards of Trade, Mississaugas of Scugog Island First Nation, Durham Workforce Authority, Business Advisory Centre Durham, Spark Centre, 1855 Accelerator, OPEN.Innovate, and Central Counties Tourism; and

C) That Durham Region Council extend its thanks to the many contributors and collaborators throughout the Region and the members of the Steering Committee for their time, dedication, and support to this important project."

Please find enclosed a copy of "Ready Set Future" for your information.

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/tf

If you require this information in an accessible format, please contact 1-800-372-1102 extension 2097.

c: N. Cooper, Clerk, Town of Ajax
F. Lamanna, Clerk, Township of Brock
J. Gallagher, Clerk, Municipality of Clarington
M. Medeiros, Clerk, City of Oshawa
S. Cassel, Clerk, City of Pickering
B. Jamieson, Clerk, Township of Scugog
D. Leroux, Clerk, Township of Uxbridge
C. Harris, Clerk, Town of Whitby
All members of the Steering Committee
Durham Economic Development Partnership
Durham's post-secondary institutions
Durham Chambers of Commerce and the Boards of Trade
Mississaugas of Scugog Island First Nation
Durham Workforce Authority
Business Advisory Centre Durham
Spark Centre
1855 Accelerator
OPEN.Innovate
B. Bridgeman, Commissioner of Planning and Economic Development

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Barb Goodwin MPA, CPA/CGA, BComm, CPM, CMMIII
Commissioner of Corporate Services

December 28, 2022

Mr. Chris Darling
Chief Administrative Officer
Central Lake Ontario Conservation Authority
100 Whiting Avenue
Oshawa, ON L1H 3T3

Dear Mr. Darling:

RE: Appointments to the Central Lake Ontario Conservation Authority, Our File: C14

Please be advised that at the Regional Council meeting held on December 21, 2022, the following individuals were appointed to the Central Lake Ontario Conservation Authority:

Regional Councillor Crawford, Town of Ajax
Local Councillor S. Elhajjeh, Municipality of Clarington
Local Councillor C. Traill, Municipality of Clarington
Local Citizen Representative R. Hooper, Municipality of Clarington
Regional Councillor Chapman, City of Oshawa
Regional Councillor Kerr, City of Oshawa
Regional Councillor Marimpietri, City of Oshawa
Regional Councillor Neal, City of Oshawa
Regional Councillor Pickles, City of Pickering
Regional Councillor McDougall, Township of Scugog
Regional Councillor Garrod, Township of Uxbridge

The following Regional Councillors from the Town of Whitby be appointed to the Central Lake Ontario Conservation Authority for a rotating one year term as follows:

Term	Appointments
January 1 – December 31, 2023	Councillor Roy Councillor Leahy Councillor Yamada Councillor Mulcahy
January 1 – December 31, 2024	Councillor Roy Councillor Mulcahy Councillor Leahy Councillor Shahid

Term	Appointments
January 1 – December 31, 2025	Councillor Roy Councillor Mulcahy Councillor Shahid Councillor Yamada
January 1 – November 14, 2026	Councillor Roy Councillor Leahy Councillor Shahid Councillor Yamada

Should you require further information in this regard, please do not hesitate to contact the Legislative Services Division at (905) 668-7711.

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/sc

c: N. Cooper, Clerk, Town of Ajax
J. Gallagher, Clerk, Municipality of Clarington
M. Medeiros, Clerk, City of Oshawa
S. Cassel, Clerk, City of Pickering
B. Jamieson, Clerk, Township of Scugog
D. Leroux, Clerk, Township of Uxbridge
C. Harris, Clerk, Town of Whitby

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Barb Goodwin MPA, CPA/CGA, BComm, CPM, CMMIII
Commissioner of Corporate Services

December 28, 2022

Mr. John MacKenzie
Chief Administrative Officer
The Toronto & Region Conservation Authority
5 Shoreham Drive
Downsview, ON M3N 1S4

Dear Mr. MacKenzie:

RE: Appointments to the Toronto and Region Conservation Authority, Our File: C14

Please be advised that at the Regional Council meeting held on December 21, 2022, the following members of Regional Council were appointed to the Toronto and Region Conservation Authority:

Regional Councillor Dies, Town of Ajax
Regional Councillor Ashe, City of Pickering
Regional Councillor Barton, Township of Uxbridge

Should you require further information in this regard, please do not hesitate to contact the Legislative Services Division at (905) 668-7711.

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/sc

c: N. Cooper, Clerk, Town of Ajax
S. Cassel, Clerk, City of Pickering
D. Leroux, Clerk, Township of Uxbridge

Sent by Email

December 14, 2022

Mary Medeiros
City Clerk
City of Oshawa
50 Centre St. S.
Oshawa, ON L1H 3Z7
clerks@oshawa.ca

Subject: Re: Amendments to Bill 3, Strong Mayors, *Building Homes Act, 2022*
Corr. 35-22
File: A-1400

The Council of The Corporation of the City of Pickering considered the above matter at a Special Meeting held on December 5, 2022 and adopted the following resolution:

1. That Corr. 35-22, from Mary Medeiros, City Clerk, City of Oshawa, dated November 2, 2022, regarding Amendments to Bill 3, Strong Mayors, *Building Homes Act, 2022,* be received;

2. That Mayor Ashe send a letter to the Premier of Ontario, Minister of Municipal Affairs and Housing, Deputy Minister of Municipal Affairs and Housing, Secretary of the Cabinet, Head of the Ontario Public Service, Deputy Attorney General of Ontario, Attorney General, MPP Parliamentary Assistant to the Attorney General advising that:

    i. Pickering City Council does not support the amendments to Bill 3, Strong Mayors, *Building Homes Act, 2022*; and,

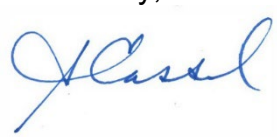
    ii. Pickering City Council does not support the amendments applying to the City of Pickering;

3. That a copy of the Council resolution be provided to the Region of Durham, all Durham Region municipalities, Durham Region Members of Provincial Parliament, AMO, OMAA, and AMCTO.

A copy of the original correspondence is attached for your reference.

Should you require further information, please do not hesitate to contact the undersigned at 905.420.4660, extension 2019.

Yours truly,



Susan Cassel
City Clerk

SC:am

Enclosure

Copy: The Hon. Peter Bethlenfalvy, Member of Provincial Parliament, Pickering-Uxbridge
Patrice Barnes, Member of Provincial Parliament, Ajax
Lorne Coe, Member of Provincial Parliament, Whitby
Jennifer French, Member of Provincial Parliament, Oshawa
Todd McCarthy, Member of Provincial Parliament, Durham
Laurie Scott, Member of Provincial Parliament, Haliburton-Kawartha Lakes-Brock
Alexander Harras, Regional Clerk/Director of Legislative Services, The Regional Municipality of Durham
Becky Jamieson, Director of Corporate Services/Clerk, Township of Scugog
Nicole Cooper, Director of Legislative & Information Services, Town of Ajax
Chris Harris, Clerk, Town of Whitby
Fernando Lamanna, Clerk, Township of Brock
Debbie Leroux, Clerk, Township of Uxbridge
June Gallagher, Municipal Clerk, Municipality of Clarington
The Association of Municipalities of Ontario
The Ontario Municipal Administrators Association
The Association of Municipal Clerks and Treasurers of Ontario
Chief Administrative Officer

Corporate Services Department
City Clerk Services

File: 03-05

November 2, 2022

DELIVERED BY E-MAIL
(clerks@durham.ca)

Regional Municipality of Durham

Re: Amendments to Bill 3, Strong Mayors, Building Homes Act, 2022

Oshawa City Council considered the above matter at its meeting of September 26, 2022 and adopted the following recommendation:

"Whereas, on August 10, 2022, the Ontario government introduced Bill 3, Strong Mayors, Building Homes Act, 2022 ("Strong Mayors, Building Homes Act"), which amends the Municipal Act, 2001, the City of Toronto Act, 2006, and the Municipal Conflict of Interest Act to advance provincial priorities; and,

Whereas, the Strong Mayors, Building Homes Act provides the mayors of Toronto and Ottawa with new powers, which alters the governance and public administration of the cities of Ottawa and Toronto; and,

Whereas, changes to the Strong Mayors, Building Homes Act gives the mayors of Toronto and Ottawa, as head of council, broader scope of authority including, but not limited to, the following powers:

Direct municipal employees to:

- undertake research and provide advice to the head of council and the municipality on policies and programs of the municipality;
- carry out duties related to the exercise of the power or performance of the duty, including implementing any decisions made by the head of council;

Appoint a chief administrative officer:

- the powers of a municipality under section 229 of the Municipal Act, 2001, with respect to the chief administrative officer, are assigned to the head of council;

Powers regarding organizational structure:

- determine the organizational structure of the municipality are assigned to the head of council;

Employment matters:

- hire, dismiss or exercise any other prescribed employment powers with respect to the chief administrative officer, head of any division or the head of any other part of the organizational structure (excluding those positions appointed by statute or any other prescribed persons);

Powers re local boards:

- appoint, dismiss or revoke the appointment of chairs and vice-chairs of local boards;

Powers re committees:

- establish or dissolve committees;
- appoint, dismiss or revoke chairs and vice-chairs of committees;
- assign functions to committees;

Powers re meetings:

- despite any procedure by-law passed by the municipality, if a particular matter could potentially advance a prescribed provincial priority, the head of council may require the council to consider the matter at a meeting;

Veto powers:

- despite any procedure by-law passed by the municipality, if the head of council is of the opinion that all or part of a by-law could potentially interfere with a prescribed provincial priority, the head of council may provide written notice to the council of that municipality regarding intent to consider vetoing the by-law;

Powers and duties re budget:

- the powers and duties of a municipality with respect to proposing and adopting a budget are assigned to the head of council;
- prepare a proposed budget for the municipality and provide the proposed budget to the council for the council's consideration; and,

Whereas, these additional powers could extend to other municipal mayors; and,

Whereas, the amendments could have unintended consequences including reducing the role and responsibilities of municipal Councils on such matters, thereby detrimentally affecting local democracy; and,

Whereas, at the August 2022 AMO Conference, the Premier of Ontario stated the importance of working with municipal partners and the power of collaboration in building Ontario together; and,

Whereas, there was limited consultation with members of the public, Ontario municipalities including mayors, chief administrative officers / city managers as well as key stakeholders such as the Association of Municipalities of Ontario (“AMO:), Ontario Municipal Administrators’ Association (“OMAA”), Association of Municipal Managers, Clerks and Treasurers of Ontario (“AMCTO”); and,

Whereas, the current municipal governance is democratic and is effective and efficient in achieving provincial priorities; and,

Whereas, the changes to Bill 3 are intended to take effect on November 15, 2022,the start date of a new municipal council term;

Therefore be it resolved:

1. That Mayor Dan Carter send a letter to the Premier of Ontario, Minister of Municipal Affairs and Housing, Deputy Minister of Municipal Affairs and Housing, Secretary of the Cabinet, Head of the Ontario Public Service, Deputy Attorney General of Ontario, Attorney General, MPP Parliamentary Assistant to the Attorney General advising that:

    i. Oshawa City Council does not support the amendments to Bill 3, Strong Mayors, Building Homes Act, 2022; and,

    ii. Oshawa City Council does not support the amendments applying to the City of Oshawa;

2. That a copy of the Council resolution be provided to the Region of Durham, all Durham Region municipalities, Durham Region Members of Provincial Parliament, AMO, OMAA and AMCTO.”

If you need further assistance concerning the above matter, please contact me at the address listed below or by telephone at 905-436-3311.

Mary Medeiros
City Clerk

/fb

c. Corporate Services Department
Durham Region Municipalities
Durham Region Members of Provincial Parliament
Association of Municipalities of Ontario
Association of Municipal Managers, Clerks and Treasurers of Ontario
Ontario Municipal Administrators’ Association

Clarington

If this information is required in an alternate format, please contact the Accessibility Co-ordinator at 905-623-3379 ext. 2131

December 14, 2022

The Honourable Doug Ford, M.P.P.
Premier of Ontario
Via Email: premier@ontario.ca

To Premier Ford:

Re: More Homes Built Faster Act, 2022 (Bill 23); Comments

File Number: PG.25.06

Please be advised you are receiving this notice from the Municipality because you are required to be notified, the applicant, consultant, or have registered to be added to the interested parties list so you can continue to receive information about this matter.

At a meeting held on December 13, 2022, the Council of the Municipality of Clarington approved the following Resolution #C-215-22:

> That Report PSD-054-22 be received;
>
> That Report PSD-054-22 be adopted as the Municipality of Clarington's comments to the Province on the proposed changes introduced under the *More Homes Built Faster Act, 2022* (Bill 23) with the following additional comments;
>
> - the proposed changes in Bill 23 would significantly reduce municipal collections from developers to pay for and deliver infrastructure to support population growth (e.g. development charges for road improvements, stormwater infrastructure, parks, recreational facilities, libraries, etc.);
> - the Municipality of Clarington supports the principle that growth should pay for growth;
> - Staff have reviewed the proposed changes to Development Charges, Parkland Dedication, and Community Benefit Charges and have quantified the anticipated financial impact on Development Charges over a 10-year period to be a reduction of approximately $18.3M, equating to $1.8M per year or an annual tax levy increase of 2.6% and which does not include funding shortfalls related to other exclusions, discounts, Parkland Dedication and Community Benefits Charges;

- with the proposed reduction in municipal revenues from development charges (DCs), community benefit charges and cash-in-lieu of parkland dedication fees collected from developers, a larger burden of the growth-related infrastructure costs will shift to property taxes / existing residents and businesses;
- while Bill 23 may provide for more housing units, significantly reducing land use and infrastructure planning oversight of upper and lower tier municipalities, as well as conservation authorities, has the potential to cause public safety impacts (e.g. traffic, parking, flooding issues, water quality, air quality), as well as the loss of natural heritage and culture heritage resources, parkland, and overall good land use planning practices that would otherwise provide for a mix of housing options in sustainable, livable communities;
- by limiting third-party appeal rights, Bill 23 may result in faster approval processes, but limits public participation in a process that has long-term impacts on the local community;
- it also limits the ability of neighbours to bring forward concerns about a development that may directly affect the use of their property;
- Bill 23 will require that Heritage registers be reviewed and decisions made whether listed properties are to be designated, and if not, then removed from the register within 2 years; once removed, those properties cannot be added back to the Register for another 5 years;
- Bill 23 provides no mechanisms to ensure, and it is unclear how, any potential savings from the proposed changes would be passed on to the homebuyer to ensure long-term affordability;
- an increase in supply does not necessarily mean an increase in affordability;
- Bill 23 will create a significant burden on municipal staff resources to implement the proposed changes, at a time when many municipalities are dealing with increased (financial and staffing) constraints;
- the effect of Bill 23 is to reduce the amount available park space in new developments given their importance of our families and their quality of life.

That Provincial intervention in the form of settlement area boundary expansions, Minister's Zoning Orders and changes to the Greenbelt is not required, nor is it supported because Clarington has sufficient housing capacity in the form of approved and planned residential units to accommodate the Province's assigned Housing Target of 13,000 homes by 2031;

That Staff be directed to assess and include the resources necessary (staffing, consulting) to address the implications resulting from Bill 23 as part of the 2023 Budget;

That Clarington is concerned about the impacts that the More Homes Built Faster Act, 2022 (Bill 23) could have for the people of Clarington, including Seniors and those on fixed income who cannot afford property tax increases that could result from the loss of development charges;

That community services, building design, park space, sprawl and unplanned density are also of concern to Clarington;

That Clarington Staff be directed to work with AMO, OBCM and Durham Region to develop a plan to mitigate the impacts of Bill 23 on the quality of life in our communities;

That a copy of Report PSD-054-22 and Council's decision be sent to the Hounarable Doug Ford, Premier of Ontario, Honourable Steve Clark, Ministry of Municipal Affairs and Housing, Honourable David Piccini, Minister of Environment, Conservation and Parks, Todd McCarthy, MPP Durham, John Henry, Durham Region Chair, Durham, conservation authority partners, and the other Durham Region area municipalities, The Association of Municipalities of Ontario; and

That all interested parties listed in Report PSD-054-22 and any delegations be advised of Council's decision.

Yours truly,



John Paul Newman
Deputy Clerk

JPN/lp

c: Honourable Steve Clark, Minister of Municipal Affairs and Housing
David Piccini, Minister of Environment, Conservation and Parks
Todd McCarthy, MPP Durham
John Henry, Durham Region Chair, Durham
Gary Mueller, Director of Durham Planning and Economic Development Department
Ganaraska Region Conservation Authority
Central Lake Ontario Conservation Authority
Kawartha Conservation Authority
(Frank Fillipo (BILD – Durham Chapter)
Stacey Hawkins (Durham Region Home Builders Association)
Jeff Brooks
Eva Lindeen, Domus Developments
AMO
Durham Area Municipalities
C. Salazar, Director of Planning and Infrastructure Services
S. Allin, Planner
L. Backus, Manager of Community Planning

If this information is required in an alternate format, please contact the Accessibility Co-ordinator at 905-623-3379 ext. 2131

December 15, 2022

Honourable Steve Clark
Minister of Municipal Affairs and Housing
Via E-mail: minister.mah@ontario.ca

Dear Minister Clark:

Re: Bill 109, More Homes Act for Everyone Act, 2022 and Bill 13, Support People and Business Act, 2021 – a Recommended Path Forward for the Development Process

File Number: PG.25.06

Please be advised you are receiving this notice from the Municipality because you are required to be notified, the applicant, consultant, or have registered to be added to the interested parties list so you can continue to receive information about this matter.

At a meeting held on December 13, 2022, the Council of the Municipality of Clarington approved the following Resolution #PD-105-22:

> That Report PDS-051-22 and any related delegations or communication items, be received;
>
> That Staff proceed with the Official Plan Amendment required to expand the matters that Council may delegate in accordance with Bill 13, the *Supporting People and Businesses Act, 2021*;
>
> That the proposed approach to implement the Provincially mandated *Planning Act* changes resulting from Bill 109, *More Homes Everyone Act, 2022* be approved;
>
> That Staff assess the resources necessary (staffing, consulting) to respond to Bill 109, as part of the 2023 Budget;
>
> That the Fee By-law Amendment contained in Attachment 2 to Report PDS-051-22 be adopted;

That a copy of Report PDS-051-22 and Council's decision be sent to the Ministry of Municipal Affairs and Housing, and the other Durham Region area municipalities; and

That all interested parties listed in Report PDS-051-22 and any delegations be advised of Council's decision.

Accordingly, please follow this link to view By-law 2022-066.

Yours truly,



John Paul Newman
Deputy Clerk

JPN/lp

c: Stacey Hawkins, Executive Officer, Durham Region Home Builders Association
Frank Filippo, Chapter Chair, BILD - Durham Chapter
Gary Muller, Director of Planning, Region of Durham
Chris Jones, Director, Planning and Regulation Central Lake Ontario Conservation Authority
Ken Thajer, Planning and Regulations Coordinator, Ganaraska Region Conservation Authority
Victoria Mortelliti, RPP, MCIP, Manager, Policy, Advocacy, BILD
Durham Area Municipalities
C. Salazar, Director of Planning and Infrastructure Services
L. Backus, Manager of Community Planning
A. Burke, Principal Planner

December 19, 2022

By email: premier@ontario.ca

Province of Ontario
Legislative Building, Queen's Park
Toronto, ON M7A 1A1

Re: City Comments on Proposed Changes to the Greenbelt Plan, Greenbelt Area Boundary Regulation and Oak Ridges Moraine Conservation Plan (All Wards)

Oshawa City Council considered Report ED-22-217 at its meeting of December 12, 2022 and adopted the following recommendation of the Economic and Development Services Committee:

"1. That Item CNCL-22-80, being a motion carried by City Council at their November 15, 2022 meeting, together with Report ED-22-217 dated November 23, 2022, be endorsed as the City's comments on the Province's proposed amendments to the Greenbelt Plan, Greenbelt Area boundary regulation O. Reg. 59/05, and the Oak Ridges Moraine Conservation Plan O. Reg. 140/02; and,

2. That a copy of Report ED-22-217 dated November 23, 2022, be sent to the Province of Ontario, the Region of Durham, Durham area municipalities, Durham area M.P.P.'s and the City's Building Industry Liaison Team, which includes the Durham Chapter of the Building Industry and Land Development Association and the Durham Region Home Builders' Association."

Please find attached Report ED-22-217. Oshawa City Council respectfully requests your attention to this matter.

…/2

If you need further assistance concerning the above matter, please contact Warren Munro, Commissioner, Economic and Development Services Department at the address listed below or by telephone at 905 436-3311.



Mary Medeiros
City Clerk

/rr

c. Economic and Development Services Department
Region of Durham
Durham area municipalities
Durham area M.P.P.s
Building Industry Liaison Team

Corporation of the
Municipality of Magnetawan

Tel: (705) 387-3947
Fax: (705) 387-4875
www.magnetawan.com

P.O. Box 70, Magnetawan, Ontario P0A 1P0

RESOLUTION NO. 2022 – 332 **DECEMBER 07, 2022**

Moved by: _____

Seconded by: _____

WHEREAS the Council of the Municipality of Magnetawan receives the correspondence regarding Bill 23 the Build More Homes Faster Act;

AND WHEREAS Council appreciates and understands that the lack of attainable and affordable housing is an important issue facing the entire Province;

AND WHEREAS Bill 23 will have economic, social, and environmental implications that will affect several acts including but not limited to the *Conservation Authorities Act, Development Charges Act, 1997, Municipal Act, 2001, Ontario Heritage Act, Ontario Land Tribunal Act, 2021, Planning Act* and may make changes to the *Ontario Building Code* along with the financial burden that this legislation will have on municipalities and existing homeowners;

NOW THEREFORE BE IT RESOLVED THAT the Council of the Municipality of Magnetawan concurs with York Region Council and many others that the legislative program under the umbrella of the Ontario Housing Supply Action Plan must be paused in order to have a more in-depth consultation with municipalities and other stakeholders;

AND THAT this resolution be forwarded to the Honourable Doug Ford, Premier of Ontario, the Honourable Steve Clark, Minister of Municipal Affairs and Housing, the Honourable David Piccini, Minister of the Environment, Conversation and Parks, the Honourable Graydon Smith, Minister of Natural Resources and Forestry, the Honourable Peter Tabuns, Leader of the Opposition and interim leader of the Ontario New Democratic Party, the Honourable John Fraser Interim Leader of the Ontario Liberal Party, the Honourable Mike Schreiner, Leader of the Green Party of Ontario, Association of Municipalities of Ontario (AMO) and all Ontario municipalities.

Carried ✓ Defeated_____ Deferred_____

Sam Dunnett, Mayor

Recorded Vote Called by: _____

Recorded Vote

Member of Council	Yea	Nay	Absent
Bishop, Bill			
Hetherington, John			
Hind, Jon			
Kneller, Brad			
Mayor: Dunnett, Sam			

Knowing our heritage
we will build our future

OBCM Motion - Maximizing the Streamline Development Approval Fund

Mayor Shaun Collier – Ajax, Seconded by Mayor Dave West – Richmond Hill

WHEREAS On January 19, 2022, the province announced $45 million for the Streamline Development Approval Fund (SDAF) to help Ontario's 39 largest municipalities modernize, streamline and accelerate processes for managing and approving housing applications;

AND WHEREAS the deadline for municipalities to spend SDAF funds is February 2023;

AND WHEREAS municipal planning departments may be challenged to spend SDAF funds by the deadline in part due to province-wide staffing shortages, and the overlap of changes imposed by the More Homes for Everyone Act, 2022 and the More Homes Built Faster Act, 2022;

AND WHEREAS the Town of Ajax issued a letter to the Honourable Steve Clark, Minister of Municipal Affairs and Housing on July 13, 2022 requesting the deadline to spend the funds be extended to September 2023, and a similar letter was sent to the Minister by the Regional Planning Commissioners of Ontario on September 26, 2022;

THEREFORE BE IT RESOLVED THAT

1. Ontario Big City Mayors endorse the request for an extension for all municipalities who received the SDAF to September 2023; and

2. A copy of this motion be shared with the Honourable Steve Clark, Minister of Municipal Affairs and Housing, all OBCM members, the Association of Municipalities of Ontario, and the Regional Planning Commissioners of Ontario.

Motion passed unanimously by OBCM Mayors at meeting on December 2nd, 2022

Office of the Mayor

Tel. 905-683-4550
Fax. 905-683-8207

TOWN OF AJAX

65 Harwood Avenue
South Ajax ON
L1S 2H9

July 13, 2022

Hon. Steve Clark
Ministry of Municipal Affairs and Housing
17th Floor, 777 Bay Street
Toronto, ON M5G 2E5

Sent via email: steve.clark@pc.ola.org

Dear Minister Clark,

Re: More time needed to maximize the Streamline Development Approval Fund

On behalf of the Town, I would like to thank you and the Province of Ontario for helping to increase the housing supply through the Streamline Development Approval Fund. With these funds, Ajax is pursuing several innovations and staffing opportunities to improve our processes and timelines, although as a result of hiring challenges and economic factors beyond our control I am writing to advise that more time is needed to ensure we are receiving the full benefits of these funds.

Since 2019, construction value on developments in the Town of Ajax has topped $1-billion. To help support with the incredible volume of building, development and engineering applications, I am pleased to share that we have already hired for four positions in Planning & Development Services to support the acceleration of approvals.

Work is underway to design and implement an online portal for the submission and monitoring of planning and development documents, and we are reviewing our Planning, Building & Development-related by-laws to ensure they are in line with provincial requirements and are competitive in the industry.

The Fund will also allow the Town to contract a Corporate Indigenous Advisor to organize our processes of indigenous consultation and engagement on all development projects as we continually build our relationship with First Nations communities. The Fund is also advancing our Sustainability Internship Program, which focuses on the

implementation of sustainability-related Green Design Standards and performance measures for all new development in the Town, including working directly with prospective developers.

To ensure the Town of Ajax is maximizing the benefits of the Streamline Development Approval Fund, I would ask that the deadline to spend the funds be extended to September 2023.

Should you require any additional information to support your decision, please do not hesitate to contact me.

Thank you for your consideration,

Sincerely,



Shaun Collier
Mayor & CEO - Town of Ajax

Cc/
Ajax Council
Patrice Barnes, MPP for Ajax
Shane Baker, Chief Administrative Officer, Town of Ajax
Geoff Romanowski, Director of Planning and Development Services, Town of Ajax
Dianne Valentim, Director of Finance/Treasurer, Town of Ajax

Regional Planning Commissioners of Ontario

Please direct all correspondence to the office of the Chair

Thom Hunt, MCIP, RPP, Chair
City of Windsor
350 City Hall Square East
Suite 320
Windsor, ON N9A 6S1
Tel: (519) 255-6543 ext. 6897
Fax: (519) 255-6544

Brian Bridgeman, MCIP, RPP, Vice-Chair
Regional Municipality of Durham
605 Rossland Road East, 4th Floor
P.O. Box 623
Whitby, ON L1N 6A3
Tel: (905) 668-7711 ext. 2535
Fax: (905) 666-6208

Steve Robichaud, MCIP, RPP, Vice-Chair
City of Hamilton
71 Main Street West
5th Floor
Hamilton, ON L8P 4Y5
Tel: (905) 546-2424 ext. 4281
Fax: (905) 546-4202

www.rpco.ca

September 26, 2022

The Honourable Steve Clark
Minister of Municipal Affairs and Housing
College Park, 17th Floor
777 Bay Street
Toronto, Ontario
M5G 2E5

Re: Request for Provincial Extension to Municipal Streamlining Development Approval Fund (SDAF)

On behalf of the Regional Planning Commissioners of Ontario (RPCO), I am writing to request a Province-wide municipal extension to the funding deadline for the Streamlining Development Approval Fund (SDAF). We are very appreciative of the Province of Ontario making these funds available to municipalities.

RPCO is an organization whose members provide planning services and give planning advice to municipal Councils who represent over 75% of Ontario's population. As such, we are fully engaged on a daily basis in matters which are urban and rural; northern and southern; small town and big city. We also understand the universal importance of having a healthy development industry to support community vitality across Ontario.

There are three main reasons we see as supporting an extension to this very important Provincial Fund. The first is common to so many sectors of the Provincial economy, namely a shortage of people. Municipalities have been no exception to the dearth of people available over the past few years to support and improve the planning process, and we have heard from many communities that this has been the case. This people shortage has also affected the consulting industry that many municipalities rely on to effect change.

The second reason for an extension is the need to thoroughly develop and test options that may be the "right changes", and in some cases, to test detailed prototype solutions. In conjunction with this step is the need to continue collaboration with the development industry to "road test" potential solutions. This collaboration is essential before changes are agreed upon and implemented, especially systemic changes, to avoid unintended consequences.

The third reason for an extension relates to the concurrent implementation of the requirements of Bill 109 and SDAF work. Municipalities continue to ready themselves for new rules coming into effect in January of 2023, and "in-house" resource use is ineligible for SDAF funding. What's more, many of the same staff and consultants involved in SDAF-driven improvements are helping municipalities to implement their (Bill 109) development review process changes.

We have already reached out to the Ontario Home Builders' Association's new Chief Executive Officer (Mr. Luca Bucci) to request to meet and explore ongoing opportunities to make planning processes and outcomes better in a variety of ways. We are hopeful that our discussions will include new private-public sector partnerships wherein the development industry would build a range of affordable housing using new and scalable funding models. This was an opportunity we also included in our letter to you earlier this year (dated February 11, 2022) regarding the Housing Affordability Task Force findings. We have also reached out to Mr. David Wilkes, President and CEO of Building and Land Development Association (BILD) to engage in these discussions.

We appreciate that your Government is seeking improvements to be made by municipalities sooner rather than later. We would therefore suggest an extension of approximately six months (i.e. to the end of July 2023) for all municipalities in Ontario who received this funding. It would be unfortunate for the current shorter-term deadline (of February 2023) to pre-empt good outcomes like shorter processing times and improved tracking systems.

I am happy to discuss this matter further with you at your convenience. In the interim, please know that municipalities are appreciative and remain active in using the Fund to improve their systems and processes. This must include ongoing work with the development industry, and all in the interests of making a better Ontario.

Sincerely,

Thom Hunt, MCIP, RPP
Chair, Regional Planning Commissioners of Ontario

Cc
Mr. Ryan Amato, Chief of Staff, MMAH
Ms. Hannah Evans, Assistant Deputy Minister, Municipal Services Division, MMAH
Mr. Colin Best, President, AMO
Mr. Jae Truesdell, Office of the Premier
Mr. Luca Bucci, Chief Executive Officer, OHBA
Mr. David Wilkes, BILD
Mr. Ed Archer, RSTCAO Chair
RPCO Members

OBCM Motion re: Bill 23, More Homes Built Faster Act, 2022

WHEREAS the provincial government passed Bill 23, More Home Built Faster Act, 2022 on November 28, 2022 with regulations and changes to several provincial acts which will have a significant impact on municipalities in the province;

WHEREAS notwithstanding there are parts of Bill 23 that will help build homes faster, Ontario's Big City Mayors (OBCM) have written to Premier Doug Ford and Minister Steve Clark regarding their concerns with Bill 23, and have presented to the Standing Committee on Heritage, Infrastructure and Cultural Policy;

WHEREAS OBCM mayors have noted significant concerns relating to the impact on the collection of development charges and parkland levies, that will result in billions of dollars worth of infrastructure deficits that, without offsetting, will severely impact the current tax base as well as impact how municipalities will fund parkland spaces;

WHEREAS the impacts of this revenue shortfall will result in property tax increases and severely impact a municipality's ability to build the infrastructure needed to support the creation of new homes including roads, sewer and water systems, and supports for the delivery of fire and police services, delaying the building of new homes;

WHEREAS municipal audits announced by the province in selected municipalities will show how these reserve funds are allocated by each municipality to pay for the cost of this needed infrastructure, based on legislation from the province that strictly sets out their uses;

WHEREAS all partners in the homebuilding process, including municipalities who have responsibility for permitting, approvals and servicing, and developers who are responsible for getting shovels in the ground, can improve processes geared toward their part of creating a new housing supply;

WHEREAS while the municipal sector can help cut red tape and speed up the municipal approvals process, it is the responsibility of the province to look at delays within their ministries, and the responsibility of developers and home builders to further coordinate the building of homes in a timely manner once development approvals are in place;

WHEREAS the province has not identified accountability measures for all parties involved in creating housing, nor has the province identified annual targets to demonstrate incremental goals to build 1.5 million homes over the next decade;

THEREFORE, BE IT RESOLVED THAT OBCM mayors request the province immediately pause the implementation of changes to the development charges act and parkland fee reductions in Bill 23 until cities have been consulted on finding solutions to the impacts that these changes will have to our communities.

THAT the province put in place the Housing Supply Action Plan Implementation Table immediately and establish a terms of reference for the implementation table, and that Bill 23 is considered a priority in consultation with municipalities and other stakeholders in the home building industry;

THAT the province work with municipalities to re-open the discussion on a new long-term permanent municipal funding strategy to maintain services and fund critical infrastructure projects, and include the federal government to discuss joint solutions such as allocating a portion of the HST to cities, allowing

municipalities to build the housing that Ontarians need without having the burden fall on the existing property tax base;

THAT while this work on an additional long-term municipal funding strategy is underway, municipalities are made whole, dollar-for-dollar, by the province to eliminate the unintended consequences of revenue reductions associated with Bill 23 changes;

THAT OBCM requests all stakeholders (provincial ministries, municipalities, developers, and homebuilders) be held jointly accountable for their part of the home building process through the upcoming housing unit pledge exercise, due to the province by March 1st;

THAT OBCM requests the province work with each municipality and all other partners in the homebuilding process to identify annual targets, with agreed upon accountability measures and metrics put in place based on each partner's role in the homebuilding process;

AND THAT the Housing Supply Action Plan Implementation Table regularly identify to the Minister of Municipal Affairs and Housing legislative and regulatory amendments to mitigate or eliminate unintended consequences of Bill 23, inclusive of the effects of outside and market forces that may impact the achievement of these targets.

Legislative Services
Town of Newmarket
395 Mulock Drive
P.O. Box 328 Station Main
Newmarket, ON L3Y 4X7

clerks@newmarket.ca
tel.: 905-895-5193
fax: 905-953-5100

December 15, 2022

Sent via email

RE: Bill 23, More Homes Built Faster Act, 2022

I am writing to advise you that at the Council meeting held on December 12, 2022, Council adopted the following recommendations regarding the above referenced matter:

> Whereas the Government of Ontario recently passed Bill 23, More Homes Built Faster Act, 2022 without providing meaningful or adequate opportunity for municipalities to provide input on ways to increase the supply of housing and to improve housing affordability in Ontario while ensuring the financial capacity of municipalities to support growth and protection of the environment; and,
>
> Whereas Bill 23 will have significant negative impact on heritage housing, green standards, environmental protection of wetlands, conservation, social housing and other significant areas of concern; and,
>
> Whereas a preliminary analysis of Bill 23 by the Association of Municipalities of Ontario (AMO) indicates the transfer of up to $1 billion a year in costs from private sector developers to property taxpayers without any likelihood of improved housing affordability while also undermining environmental protection; and,
>
> Whereas the Town of Newmarket has been specifically identified as a growth area, with a target to introduce 12,000 new homes by 2031, despite a lack of sewage capacity until the southern solution as mandated by the province is completed; and,
>
> Whereas municipal estimates vary between a property tax impact of Bill 23 between five and 15 per cent; and,
>
> Whereas a growing number of municipalities have joined in expressing their concern with the negative impacts of Bill 23;

Legislative Services
Town of Newmarket
395 Mulock Drive
P.O. Box 328 Station Main
Newmarket, ON L3Y 4X7

clerks@newmarket.ca
tel.: 905-895-5193
fax: 905-953-5100

Therefore be it resolved,

1. That the Town of Newmarket formally express its opposition to Bill 23 in its current form and that this resolution be forwarded to the Premier, the Minister of Municipal Affairs and Housing Steve Clark, and MPP Newmarket-Aurora Dawn Gallagher-Murphy; and,

2. That the Town of Newmarket formally submits its inability to meet the stated target of 12,000 new homes by 2031; and,

3. That a copy of this resolution also be sent to the Association of Municipalities of Ontario, and all Ontario municipalities.

Yours sincerely,

Kiran Saini
Deputy Clerk

Copy:
Association of Municipalities of Ontario
All Ontario municipalities

Municipality of Tweed Council Meeting
Council Meeting

Resolution No. 723.
Title: Resolution Re: Natural Gas Prices
Date: Wednesday, December 14, 2022

Moved by J. Flieler
Seconded by J. DeMarsh

WHEREAS the price of natural gas is critical to the day-to-day cost of living for many residents of Ontario;
AND WHEREAS the price of natural gas plays a large role in establishing a competitive business climate;
AND WHEREAS some residents in Ontario consistently experience higher natural gas bills that are a result of transporting fuel and forecasted pricing models;
AND WHEREAS the Ontario Energy Board (OEB) has the authority to regulate natural gas prices;
NOW THEREFORE BE IT RESOLVED that the Council for the Municipality of Tweed hereby petitions the Ontario Energy Board to regulate natural gas bill costs to levels that are affordable and profitable as ı jurisdictions within Ontario that have lower costs;
AND FURTHER, that Council directs the Clerk to ensure that a copy of this Resolution be provided to the Premier of Ontario, the Minister of Energy, all Ontario Municipalities (for support), the Ontario Energy Board, Enbridge Gas Inc., and the Association of Municipalities of Ontario (AMO);
AND FURTHER, that all Resolutions of support received by the Municipality of Tweed be submitted to the Ontario Energy Board (OEB) and Enbridge Gas Inc.

Carried

Don Doherty
Mayor

MUNICIPALITY OF
North Perth
www.northperth.ca
A Community of Character
330 Wallace Ave. N., Listowel, ON N4W 1L3 Phone: 519-291-2950 Toll Free: 888-714-1993

To: Hon. Doug Ford, Premier
Hon. Steve Clark, Minister of Municipal Affairs and Housing
Hon. Michael Parsa, Associate Minister of Housing

December 6, 2022

RE: Bill 23 More Homes Built Faster Act

The Municipality of North Perth appreciates that housing is a top priority for the Province and shares the desire for more homes, especially affordable homes. However, following a high-level review of the proposed legislation, the Municipality of North Perth believes that Bill 23 will do little to accomplish this goal.

Firstly, we appreciate the opportunity to provide comments on this matter, but find it important to acknowledge that staff and Council of the Municipality require more than 30 days to digest and respond to a complex piece of legislation affecting nine existing Acts.

North Perth was disappointed to learn that Bill 23 received Royal Assent on November 28, 2022, despite the Province extending the comment period to December 9th. The Municipality feels that this further proves that although municipalities are the most informed on local housing issues, the Province does not view them as a strategic partner in solution finding and action.
As outlined below, the Municipality of North Perth has several concerns to date with the legislation.

The bill, as it is currently written, would eliminate the charges that developers currently pay toward housing. This will eliminate hundreds of millions of dollars that municipalities rely on for housing programs and dramatically reduce municipal affordable housing efforts.

Development Charges (DC) are designed to help municipalities pay for a portion of the capital infrastructure required to support new growth, to ensure that existing taxpayers are not required to subsidize costs of the infrastructure or services needed to support new residents and businesses. Without a new revenue stream to offset DC payments, the legislation hampers the ability of

municipalities to fund and deliver growth-related infrastructure. The changes to the Development Charges Act fundamentally impacts municipalities' ability to ensure growth pays for growth.

The changes to the various Acts have significant financial impacts on Ontario's municipalities along with their respective taxpayers. It is anticipated that these changes will put additional pressure on property taxes and water and wastewater rates. Property taxes and user fees are crafted to fund projects and programs that communities need, however adding more costs to existing property owners will increase their costs and could negatively impact their ability to keep their current housing affordable. Provincial legislation should not unduly burden homeowners and renters to guarantee the long-term success of solving the housing crisis.

Municipalities are extremely limited in the ways that they can collect revenue, relying on transfers from other levels of government to mitigate property tax rate increases, fund critical infrastructure and balance annual budgets. Municipalities already face an infrastructure funding gap that requires additional financial investments, resources and supports. Planning for increasing additional dwelling units will place more strain on water and wastewater systems which will require upgrading to increase capacity. This will require additional financial resources to manage, at a time when municipalities are already facing increased budgetary pressures due to inflationary costs, increased citizen expectations and the transfer of responsibilities from the Province. Without additional funding or resources from the Province to offset these costs, municipalities will have little option but to put these costs back on the taxpayer.

The amendment that all DC by-laws passed after January 1, 2022 (previously June 1, 2022) must be phased-in for the first five years that the by-law is in force will have an overall negative consequence to the goal of building more housing. The phase-in will delay necessary infrastructure projects to unlock growth while also providing incentives for development projects to be delayed until a new by-law is enacted.

Growth-related infrastructure often centres on the infrastructure itself, but a critical piece towards infrastructure is the land required to build. Land represents a significant cost for some municipalities in the purchase of property to provide

services to new residents. This is a cost required due to growth and should be funded by new development. Studies, such as Official Plans, are required to establish when, where and how a municipality will grow. These growth-related studies should remain funded by growth. Master Plans and environmental assessments are essential to understand the servicing needs that development will place on hard infrastructure; again, these are necessary studies to inform the servicing required to establish the supply of lands for development. This would restrict the supply of serviced land and would contradict the province's intent to create additional housing units.

Parkland dedication levies exist to ensure that municipal park systems grow alongside other community developments. Increasing the supply and mix of housing is an important goal that we all share; however, sufficient access to parks and greenspace cannot be overlooked as we try to create meaningful alternatives to single-family dwellings. Municipalities already face challenges with the supply of adequate parkland due to the rising costs of land and current limitations under the Planning Act relative to municipal parkland standards. Upper-tier and single-tier municipalities across the province utilize DCs to help fund the construction of new affordable housing units with the goal of providing affordable housing to those in need. The removal of housing services and limiting the tools available to municipalities to support homeless and underhoused people and families will reduce municipality participation in creating affordable housing units, putting further burden on municipal taxpayers.

In order for the Province to successfully achieve the goal of building 1.5 million homes within the next ten years, municipalities must be viewed as strategic partners. As the frontline level of government, municipalities are also eager to resolve the housing crisis and are the most informed on what is needed to create complete communities that the people of Ontario want and expect.

Please consider revisions to the regulations in Bill 23 for more meaningful review and consultation with stakeholders and input from municipalities, and conduct thorough analyses of both short and long-term impacts. To ensure informed implementation of this proposal, alternatives to improve the legislation to effectively create more attainable housing for Ontario need to be considered.

MUNICIPALITY OF
North Perth
www.northperth.ca
A Community of Character
330 Wallace Ave. N., Listowel, ON N4W 1L3 Phone: 519-291-2950 Toll Free: 888-714-1993

Sincerely,



Todd Kasenberg, Mayor
Municipality of North Perth
330 Wallace Ave. N Listowel, ON N4W 1L3
toddkasenberg@northperth.ca

CC:
MPP Matthew Rae
Environmental Registry of Ontario
All Ontario Municipalities

Northumberland County

Council Resolution

Moved By Ostrander

Seconded By Logel

Agenda Item 12.b

Resolution Number 2022-12-14-768

Council Date: December 14, 2022

"**Whereas** Northumberland County supports action to increase the supply of housing for Ontarians and specifically to address the affordable housing crisis in Ontario; and

Whereas The Government of Ontario introduced Bill 23, *More Homes Built Faster Act, 2022* on October 25, 2022 and the Bill received Royal Assent on November 28, 2022, providing insufficient time for newly elected municipal councils to provide fulsome feedback; and

Whereas Municipalities across the province have identified significant financial, environmental, public consultation, and heritage impacts related to the measures identified in Bill 23; and

Whereas The proposed change to subsection 2(4) of the *Development Charges Act, 1997* to remove "Housing Services" from the list of services that can be funded through development charges would result in the immediate removal of the housing services portion of the Northumberland County Development Charge and result in an estimated funding gap of approximately $17 million over the next 7 years for financing an estimated 250 new affordable units; and

Whereas At current building levels, an estimated 27% increase to the County portion of property taxes would be required to maintain planned investments and services, with additional tax implications anticipated for local lower-tier municipalities;

Be It Resolved That the Council of the Corporation of the County of Northumberland calls upon the Government of Ontario to pause implementation of Bill 23, and engage in meaningful engagement with municipalities and other key stakeholders to address identified concerns in order to achieve the shared goal of increasing housing supply and improving affordability and sustainability; and

Northumberland county

Council Resolution

Agenda Item 12.b **Resolution Number 2022-12-14-768**

Council Date: December 14, 2022

Be It Further Resolved That a copy of this resolution be sent to The Honourable Doug Ford (Premier of Ontario), The Honourable Steve Clark (Minister of Municipal Affairs and Housing), The Honourable Michael Parsa, (Associate Minister of Housing), the Honourable David Piccini (Minister of the Environment, Conservation and Parks and MPP for Northumberland - Peterborough South), the Association of Municipalities of Ontario (AMO), and to all Ontario municipalities; and

Be It Further Resolved That County Council direct staff to provide information on the County website regarding the estimated impacts of Bill 23 on the County levy."

Recorded Vote Requested by _____ **Councillor's Name**

Carried _____ **Warden's Signature**

Deferred _____ **Warden's Signature**

Defeated _____ **Warden's Signature**

The Corporation of the City of Cambridge
Corporate Services Department
Clerk's Division
The City of Cambridge
50 Dickson Street, P.O. Box 669
Cambridge ON N1R 5W8
Tel: (519) 740-4680 ext. 4585
mantond@cambridge.ca

December 21, 2022

Re: City of Cambridge - Opposition to Bill 23, More Homes Built Faster Act

Municipalities of Ontario,

At the Special Council Meeting of December 15, 2022, the Council of the Corporation of the City of Cambridge passed the following Motion:

Moved By: Councillor Roberts

Seconded By: Councillor Hamilton

Whereas the More Homes Built Faster Act received Royal Assent on November 28, 2022; and

Whereas these changes that will have significant impacts on several provincial Acts and in turn, significant and longstanding impacts on Ontario municipalities; and

Whereas the Act defines affordable housing as 80% of the market rate; and

Whereas a definition of affordability which is tied to a percentage of market rates remains largely unaffordable for many; and

Whereas the province has restricted the use of inclusionary zoning by limiting it to 5% of dwellings within a development, thereby limiting affordable housing opportunities; and

Whereas the province has restricted the use of inclusionary zoning by capping the time to remain affordable at 25 years, thereby limiting the longevity of housing affordability; and

Therefore, be it resolved that the Cambridge City Council requests that the provincial definition of affordable be based on income and not market rates, and

Be it further resolved that the Cambridge City Council requests that the provincial limitation of 5% of the use of inclusionary zoning within a development be increased; and

Be it further resolved that the Cambridge City Council requests that the provincial timelines regarding the use of inclusionary zoning affordable housing be increased beyond 25 years;

Be it further resolved that the Cambridge City Council requests that the Province reconsider how the More Homes Built Faster Act, 2022, will negatively impact environmental protection, heritage preservation, public participation, and loss of farmland; and

Be it further resolved that Cambridge City Council also supports the resolution passed on December 8, 2022 by the Ontario Big City Mayors regarding the More Homes Built Faster Act.

Should you have any questions related to the approved resolution, please contact me.

Yours Truly,



Danielle Manton
City Clerk

Cc: (via email)
Hon. Premier Ford
Ministry of Municipal Affairs and Housing
Ontario MP's and MPP's
Association of Municipalities of Ontario
All Ontario Municipalities
City of Cambridge Council

Office of the City Clerk

December 15, 2022

Via email: premier@ontario.ca

The Honourable Doug Ford
Premier of Ontario
Legislative Building
Toronto, ON M7A 1A1

Dear Premier:

Re: Kingston City Council Meeting, December 6, 2022 – New Motion 2 – Bill 23, More Homes Built Faster Act, 2022

At the regular meeting on December 6, 2022, Council approved New Motion 2 with respect to request to the Bill 23, More Homes Built Faster Act, 2022. At the same meeting, the following resolution was approved:

> **Whereas** this is the first opportunity for the newly elected City of Kingston's Municipal Council to comment on the Provincial Government's Bill 23, More Homes Built Faster Act, 2022 which received royal assent on November 28, 2022; and
>
> **Whereas** Bill 23 will negatively impact municipalities' ability to manage growth, fund essential services and provide new infrastructure for the community resulting in fewer affordable housing units and putting pressure on the municipal tax rate by freezing, reducing, and exempting fees and development charges; and
>
> **Whereas** Bill 23 will have a negative environmental impact by removing the Conservation Authority's ability to review and consult on development's impacting natural heritage and conservation; and
>
> **Whereas** Bill 23 will result in reduced parkland for municipalities; and
>
> **Whereas** Bill 23 will open up the Greenbelt for development when the Greenbelt should remain an environmentally protected area so it can continue to help with flood control, provide clean air, and protect us from natural disasters;

The Corporation of the City of Kingston
216 Ontario Street, Kingston, ON K7L 2Z3
Phone: (613) 546-4291 ext. 1247 Fax: (613) 546-5232 jbolognone@cityofkingston.ca

Therefore Be It Resolved That the Corporation of the City of Kingston formally opposes Bill 23, More Homes Built Faster Act, 2022, including the legislative changes that significantly reduce the of the role of the Conservation Authorities, which provide valuable consultation advice and technical support to municipalities to ensure housing is built in a safe way and does not cause any unintended environmental consequences; and

That the City of Kingston formally request that the Province provides;

1. Funding be put in place for municipalities to replace the loss in development charges and revenue, also that the province should provide funding for municipalities to offer and build affordable housing which could include units at 50% market value and geared to income, and funding be available to municipalities to compensate for the reduction of parkland conveyance to allow the city to acquire the needed parkland; and

2. A process to have methods to encourage underutilized privately owned lands within the municipal boundary; and

That the Corporation of the City of Kingston request the provincial government undertake consultation to allow municipalities the much needed time to review the impact of the Regulations associated with Bill 23 once issued and be provided a minimum of 90 days to review and report back to the province with comments and suggestions regarding the Regulations; and

That a copy of this Motion be sent to Hon. Doug Ford (Premier of Ontario), Hon. Steve Clark (Minister of Municipal Affairs and Housing), Hon. Victor Fedeli (Chair of Cabinet), Hon. Sylvia Jones (Deputy Premier), Hon. Michael Parsa (Associate Minister of Housing), Hon. Graydon Smith (Minister of Natural Resources and Forestry), Peter Tabuns (Interim Leader of the New Democratic Party), John Fraser (Interim Leader of the Liberal Party), Mike Schreiner (Leader of the Green Party), Ted Hsu (MPP for Kingston and the Islands), ROMA, Ric Bresee (MPP for Lennox & Addington) and John Jordan (MPP for Kingston, Frontenac & Lanark); and

That a copy of this Motion be sent to the Association of Municipalities of Ontario (AMO) and all Ontario municipalities.

Yours sincerely,



John Bolognone
City Clerk
/nb

C.C. Minister of Municipal Affairs & Housing Steve Clark
Hon. Victor Fedeli, Chair of Cabinet
Hon. Sylvia Jones, Deputy Premier
Hon. Michael Parsa, Associate Minister of Housing
Hon. Graydon Smith, Minister of Natural Resources & Forestry
Peter Tabuns, Interim Leader of the New Democratic Party
John Fraser, Interim Leader of the Liberal Party
Mike Schreiner, Leader of the Green Party
Ted Hsu, MPP for Kingston & the Islands
John Jordan, MPP for Kingston, Frontenac Lanark
Ric Bresee, MPP for Lennox & Addington
AMO
ROMA
All Ontario Municipalities

Ministry of Municipal Affairs and Housing

Office of the Minister

777 Bay Street, 17th Floor
Toronto ON M7A 2J3
Tel.: 416 585-7000

Ministère des Affaires municipales et du Logement

Bureau du ministre

777, rue Bay, 17e étage
Toronto (Ontario) M7A 2J3
Tél. : 416 585-7000

Ontario

234-2022-5422

January 4, 2023

Dear Heads of Council,

I'm pleased to share an update on key initiatives underway at my ministry to help meet our government's goal of building 1.5 million new homes over the next 10 years.

The legislature recently passed our government's *More Homes Built Faster Act*, *2022* which takes bold action to ensure that all communities can grow with a mix of ownership and rental housing types to meet the needs of all Ontarians.

Our government knows that building inspectors play a critical role in ensuring that new homes meet the public safety requirements set out in Ontario's Building Code. However, the capacity of municipal building departments has been impacted by recruitment challenges and the increasing number of building inspectors retiring from the profession. That's why, earlier this year, we took action to help municipalities address labour supply shortages in the building sector by amending the Building Code to provide a new model for municipal building departments to design and administer internship programs for building inspectors.

Effective July 1, 2022, municipal building departments can establish program entry criteria for interns that meet their own local recruitment and enforcement needs. This new internship model supports public safety by continuing to require that a qualified building inspector or Chief Building Official supervises the work of interns. The interns must also pass ministry technical and legal exams before being able to practice independently as building inspectors.

In the coming months, the ministry will develop guidance materials to support municipalities that are interesting in launching local programs to recruit new intern building inspectors. We look forward to working with municipalities to implement local internships.

Additionally, the ministry has engaged a consultant to identify opportunities for enhancements to the qualification program for building practitioners. We are seeking input from the public, including municipalities, building inspectors, designers, septic installers and building professionals not regulated by the ministry. This feedback will help guide future decisions on new approaches to qualification.

For more information and to review the discussion paper, please visit the Environmental Registry of Ontario (ERO) website at https://ero.ontario.ca/notice/019-6433.

…/2

In addition to this ongoing work, the ministry is modernizing the provincial Qualification and Registration Tracking System (QuARTS). QuARTS is used by over 7,000 building practitioners to update their qualification and registration information online and to help the government regulate safety and compliance in the Ontario building industry.

Modernizing QuARTS will create a more efficient and user-friendly system, allowing building officials to spend more time on the important task of reviewing and issuing building permits to support the government's key priority of increasing housing stock.

Finally, the ministry made the 2012 Building Code Compendium freely available in Adobe PDF format through the website (https://www.ontario.ca/page/request-digital-copy-2012-building-code-compendium). Since its launch in March 2022, the ministry has provided free copies to over 5,000 building professionals to reduce barriers and help accelerate the construction of new homes across the province. This initiative has enabled inspectors to access Building Code requirements while performing their work onsite in a more convenient format. Additionally, candidates studying for the ministry's exams are able to access and learn Building Code content in an easy to navigate, user-friendly manner.

As part of the plan to build 1.5 million homes over the next 10 years, the government looks forward to continuing consultations with municipalities, the building industry and the public to investigate further changes to Ontario's Building Code in order to create more housing and support public safety.

If you are interested in learning more about any of the ministry's initiatives related to the transformation of Building Code services in Ontario, please contact us at BuildingTransformation@ontario.ca.

Thank you for your continued partnership as we work together to get more homes built faster for all Ontarians.

Sincerely,

Steve Clark
Minister

c: Municipal Clerks

The Honourable Doug Ford, Premier of Ontario
Premier's Office, Room 281
Legislative Building, Queen's Park
Toronto, ON M7A 1A1

December 21, 2022

Dear Premier:

The Council of the County of Brant wishes to express our deep concern with the *More Homes Built Faster Act*, omnibus legislation known as Bill 23 that received royal assent only 31 days after its first reading. This legislation brought forward significant changes to the municipal planning and development framework with little regard for municipal implementation. These changes will restrict how municipalities manage growth and will impede the ability to provide essential infrastructure and community services to accommodate growth. This legislation will have negative impacts on the County of Brant's ability to provide housing to address the housing affordability and supply crisis at the local and provincial level. While change is needed to the functions of planning and development in order to address current issues, the changes made through Bill 23 will most certainly result in negative impacts to local communities.

Bill 23 proposes to freeze, remove, and reduce development charges, community benefits charges, and parkland dedication requirements. Each of these mechanisms is important for municipalities to not only manage and pay for growth, but to provide the services and amenities that residents, both present and future, wish to have in their complete communities.

Bill 23 will remove aspects of Site Plan Control, including the ability to regulate architectural details and aspects of landscape design, important components for municipalities to guide development with community character objectives that support their unique characteristics. For residential development of 10 units or less that are now exempt from Site Plan Control, the County will not be able to request green energy elements to reach net zero. The ability to guide development in this way is an important function for the identity and sustainability of individual municipalities who seek to attract and sustain businesses and residents.

Bill 23 will remove the ability of Conservation Authorities to support municipalities, by protecting the public from natural hazards while protecting natural areas, on a watershed level. Unintended consequences of Bill 23 will result in duplicate roles at conservation authorities and municipalities, with both agencies each having to have their own experts on natural hazards and natural heritage matters. Additional staff resources will be required, which could result in additional expense and delays in approving housing. For example, a conservation authority will need to review wetlands for hazards, while a municipality will require new expertise to review for water quality impacts and natural heritage.

Bill 23 could result in the further loss of wetlands, woodlands and wildlife habitat as a result of changes to the Ontario Wetland Evaluation System and permissions for environmental offsetting. The County of Brant encourages the Province to create stronger policies that result in the permanent protection of natural heritage systems and water resource systems and focus on solutions that direct development to

other areas such as through greyfield redevelopment. Natural areas are essential part of complete communities, contributing to our mental and physical well being as well as providing water resources for drinking water supply that supports population growth.

The County of Brant understands the urgent need to address the current housing affordability and supply crisis, and we see the detrimental impacts of this crisis at the local level in both rural and urban areas of Brant, Brantford and other neighbouring municipalities. However, we oppose the approach taken by *Bill 23, More Homes Built Faster Act, 2022* and the impacts it will have at the municipal level with the limited scope of addressing housing supply challenges.

Many additional components of this legislation await further implementation and we urge the Provincial government to meet with municipalities to discuss these impacts and future direction before further steps are taken. As a small rural municipality experiencing population and job growth, the County of Brant has big ideas about how to tackle our planning and development challenges in ways that meet both provincial and municipal objectives. We continue to engage with the Province of Ontario and submit constructive comments through the Environmental Registry postings. These ideas were also included in a draft version of a new Official Plan for the County of Brant, submitted to MMAH on August 17th, 2021, for the 90-day one window review and comment period under the Planning Act. The province's July 1st, 2022, deadline for our municipal Official Plan to be in conformity with the Growth Plan for the Greater Golden Horseshoe has come and gone, and the County of Brant is still awaiting direction from the Ministry of Municipal Affairs and Housing on several outstanding issues highlighted in our draft official plan submission, including both housing supply and affordability concerns at the local level.

While Bill 23 seeks to increase housing supply, it is being done without adequate consultation with municipal partners, Indigenous communities, and other stakeholders. These legislative changes will not result in creating affordable housing and will come at the expense of other important objectives such as environmental protection, mitigating climate change, heritage preservation, public participation, loss of farmland, the provision of future services, amenities, and infrastructure, and without regard to the negative impact it will have on residential tax rates and housing affordability in the long-run.

Please be advised that this matter was considered by the Council of the County of Brant at its meeting held on December 20, 2022, and in this regard, Council adopted the following resolution:

1. That report RPT-0711-22 regarding an overview of Bill 23, More Homes Built Faster Act, 2022 be received; and

2. That report RPT-0711-22 and attached comments be forwarded onto the Province of Ontario on Bill 23, More Homes Built Faster Act, 2022 and the associated consultations posted on the Environmental Registry and Ontario Regulatory Registry as appropriate; and

3. That the County of Brant request that the Province of Ontario commit to an enhanced municipal consultation process such as by establishing technical working groups with municipalities, Indigenous communities, and other stakeholders on further proposed policy changes as part of Bill 23, More Homes Built Faster Act, 2022; and

4. That report RPT-0711-22 be shared with the two Conservation Authorities having jurisdiction within the County of Brant, and

5. That report RPT-0711-22 be shared with the Ontario Professional Planners Institute.

6. That Council directs staff to translate RPT-0711-22 into a resident facing communication that specifically relates the impacts of Bill 23 to residents, and

7. That the County's treasurer be directed to summarize the implications of Bill 23 at an upcoming budget presentation

The Council approved report has been attached to this correspondence for your consideration and any attention deemed necessary.

Yours sincerely,

pp Dyjach

Alysha Dyjach
Clerk and Director of Council Services
The Corporation of the County of Brant

Att: County of Brant Report RPT-0711-22 – Bill 23 Update

Cc: The Honourable Steve Clark, Minister of Municipal Affairs and Housing
MPP Will Bouma, Brantford-Brant
MPP Ernie Hardeman, Oxford
MPP Brian Riddell, Cambridge
Ryan Amato, Chief of Staff – Ministry of Municipal Affairs and Housing
Christ Polous, Director of Issues Management – Ministry of Municipal Affairs and Housing
Association of Municipalities of Ontario (AMO)

TOWN OF AJAX
REPORT OF THE COMMUNITY AFFAIRS AND PLANNING COMMITTEE

For consideration by the Council of the Town of Ajax on January 23, 2023

The Community Affairs and Planning Committee met at 7:00 p.m. on January 9, 2023

Present: Councillor R. Tyler Morin, Chair
Regional Councillor M. Crawford
Regional Councillor J. Dies
Regional Councillor S. Lee
Councillor N. Henry
Councillor L. Bower
Mayor S. Collier

The Community Affairs & Planning Committee recommends as follows:

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of Minutes

Moved by: S. Lee
Seconded by: S. Collier

That the Minutes of the Community Affairs and Planning Committee Meeting held on December 5, 2022, be adopted.

CARRIED

4. Public Meetings

None

5. Presentations / Reports

5.1 PDS-2023-01: Ajax Housing Strategy – Phase Two Recommendation Report and Draft Housing Action Plan

Moved by: J. Dies
Seconded by: L. Bower

1. That the Ajax Housing Strategy – Phase Two Recommendation Report and Draft Housing Action Plan, as provided in Attachment 1, be received for information; and

2. That staff be authorized to proceed with public consultation on the Ajax Housing Strategy – Phase Two Recommendation Report and Draft Housing Action Plan.

CARRIED

6. Adjournment

Moved by: M. Crawford
Seconded by: N. Henry

That the January 9, 2023 meeting of the Community Affairs and Planning Committee be adjourned. (8:05 p.m.)

CARRIED

R. Tyler Morin, Chair

Town of Ajax Report

Report To:	Council
Prepared By:	Kassandra Cruciano Senior Advisor, Grants, Partnerships & Strategic Initiatives
Report #:	CAO-2023-01
Subject:	**2023 Allocations – Ajax Partnership Fund**
Ward(s):	ALL
Date of Meeting:	January 23, 2023

Recommendation:

That Council receive this report for information.

Background:

In June 2022, Ajax Council was presented with a detailed framework for a new partnership-driven approach to corporate giving and directed staff to implement the new Ajax Partnership Fund program for projects beginning in 2023. This new program has created a simple and streamlined annual initiative with expanded eligibility to fund creative, grassroots endeavours that extend beyond the Town's normal service offerings. It has increased accountability and transparency in the decision-making process, and ensures a renewed focus on promoting the Town's contributions through this program.

The Ajax Partnership Fund was established to provide $1,000,000 in funding to community organizations over the four-year term of Council, with an annual allocation budget of $250,000.

In November 2022, applications opened for the 2023 Ajax Partnership Fund for a three-week period, closing on December 6. Applicants were prompted to submit proposals for grant funding to benefit Ajax's community, align with the Town's strategic goals and plans, and recognize the Town through meaningful partnerships. Staff expect to implement a more prolonged process for the 2024 applicants, which is scheduled to begin in August 2023.

Staff hosted a webinar that had over 40 community members attend, initiated an "influencer promotional box" program to key stakeholders, issued a media release, promoted the program through direct and targeted email newsletter campaigns, and implemented a multi-pronged social media strategy to ensure adequate uptake.

Discussion:

As a result of this integrated promotional campaign, the Town received over 80 unique applications to the Ajax Partnership Fund program, amounting to nearly $3.3 million in total project value.

Each application was assessed individually using a scoring matrix that assessed the clarity and completion of the application, the capacity and experience of the applicant to complete their proposal, the financial feasibility and risk profile of the project, and alignment with the Town's Strategic Plan or other corporate strategies.

Based on the recommendations of Public and Strategic Affairs, the Senior Management Team conditionally approved the following 39 projects to be funded through the 2023 Ajax Partnership Fund.

Formal approval of the projects will require the passage of the 2023 Operating Budget in February 2023, and the successful execution of a Partnership Agreement between the Applicant and the Town.

Conditionally Approved Projects

Organization Name	**Project**	**APF Grant**
Ajax Pickering Hospital Foundation	Contribution to the capital campaign to purchase new cancer screening equipment for the Ajax-Pickering Hospital, resulting in increased testing capacity to over 10,000 samples in a single year.	$25,000
Charles Best Foundation	One year contribution to the capital campaign for the expansion of the Charles H. Best Centre to support the 200 Ajax residents with T1 diabetes that are clients of the Centre, in line with contributions made by Whitby and Oshawa.	$25,000
Toronto and Region Conservation Authority	Launch of Youth Greening Pilot Project, which will engage 160 Ajax youth in 10 greening events to plant 1,000 indigenous trees, shrubs and wildflowers in Ajax.	$25,000
Herizon House	Fully fund the renovations and furniture upgrades of 2 of the 12 bedrooms at Herizon House to benefit the over 250 women and families that stay with them each year.	$15,000
Ajax Pickering Road Watch	To continue their programming of road safety awareness, education and enforcement; and to purchase a new mobile speed board for use in Ajax.	$10,000
Girls Inc	Support up to 50 girls with 25% from Ajax to participate in a program focused on overall mind and body health.	$10,000
Scientists in Schools	For inclusive STEM-enrichment programming through approximately 40 workshops for 650 Ajax children and youth in lower-income neighbourhoods within the DDSB and DCDSB.	$10,000
Ajax Legion	To fund the supply and installation of the wet chemical fire suppression	$9,000

	system, testing costs and engineering review of the kitchen drawings to benefit the residents of Ajax that visit the Legion.	
Alzheimer Society of Durham Region	To establish a permanent Dementia Friendly Satellite program at the Ajax Community Centre.	$5,000
Barrett Centre for Sustainable Urban Agriculture	One year commitment of support for the Food Literacy Innovation Zone at their location in Ajax to increase food literacy for neighbouring families.	$5,000
Canadian National Institute for the Blind (CNIB)	To support 1 CNIB Mobile Hub stop in Ajax that connects those impacted by sight loss with supportive programming.	$5,000
Christian Family Outreach Centre (CFOC)	To enhance current workshop and therapy groups and purchase new computer stations to support clients of the Hub transitioning to more permanent housing.	$5,000
Durham Children's Aid Society Foundation	Provide 35 Ajax youth with clothing, gift cards, personal hygiene products, etc. through the 2023 Holiday Hope campaign.	$5,000
Durham Rape Crisis Centre	Development of 25 Survivor Kits to support survivors, and provide education on the services available through the DRCC and other agencies.	$5,000
Durham West Lightening	Support for 16 players to participate in the first-ever girls division at an international peewee hockey tournament, 50% of whom are residents of Ajax.	$5,000
Hockey Helps the Homeless	Provision of a Game Day sponsorship for a regional hockey tournament seeking to raised $50,000 for Joanne's House in Ajax.	$5,000
PARA Marine Search and Rescue	Annual contribution to support ongoing critical safety support initiatives on Lake Ontario by 50 active search and rescue volunteers.	$5,000
Spark Angel Network	To support up to 3 Pitching and Financing Forums in Ajax for new entrepreneurs seeking to raise capital from angel investors, with a focus on young entrepreneurs, newcomers, retirees and individuals in under-represented groups.	$5,000
St. Andrew's Community Garden	To purchase 4 galvanized raised beds per plot and 2 new accessible plots to increase the accessibility of St. Andrew's Community Garden.	$4,000

Durham Region International Film Festival	To support the second day of DRIFF's annual film festival at the St. Francis Centre in Ajax.	$3,500
Rangtarang	Partnership to hold a 2023 Navratri event in Ajax.	$3,500
Oyeniran Education Support	Funding support for the 8th annual Looking Back into the Future Black History Month Conference.	$3,000
Caremongers Ajax-Pickering	Continuation of the Caremongers' phone hotline through 2023, which connects volunteers with residents in need.	$2,500
Durham Alliance Outreach	To support the delivery costs and volunteer recruitment and training initiatives for the only 2SLGBTQ Food Bank in Durham Region.	$2,500
Durham Black History Month Committee	To support the 18th annual Durham Black History Month event being held in Ajax.	$2,500
J. Clarke Richardson Robotics Club	Material and competition costs for a high school robotics club, encouraging youth involvement in STEM.	$2,500
Pickering High School Robotics Club	Material and competition costs for a high school robotics club, encouraging youth involvement in STEM.	$2,500
Talkin' Tales	Support for the "Carnival of Stories" Black History Month event at the Ajax Community Centre.	$2,500
Womxn of Colour Durham Collective	To assist with rental space and meal costs for the We Outside Pilot Program, offering recreational and wellness activities geared towards racialized women, femmes and non-binary people who may have faced barriers to accessing traditional sports and recreation activities. There will be 12 participants in this program with 25% from Ajax.	$2,500
Arts on Fire	Art classes for 10 newcomers to Ajax to increase creative socialization opportunities, in partnership with the Welcome Centre.	$2,100
Boys and Girls Club of Durham Region	Funding towards the LeadUP program, which supports connecting Ajax youth to their community and enhancing their professional and academic outlooks.	$2,000
Durham Crossover Basketball	Supporting the purchase of sports equipment and gear for youth basketball league in Ajax.	$2,000
PROBUS Ajax	To hold an Open House for Seniors to attract new members, and purchase promotional pamphlets and banners to	$2,000

	introduce the Club to the broader seniors community in Ajax.	
Ajax Creative Arts	Funding to provide artistic workshops, primarily targeted towards seniors in Ajax, at a minimal cost to participants to bolster membership.	$1,900
Durham Black Youth Mental Health Week	Towards programming, event costs and recreational activities during March Break geared towards Black youth, in partnership with Durham Regional Police Services, including a full-day basketball tournament at J. Clarke Richardson Collegiate.	$1,500
Durham Family and Cultural Centre	Funding towards the DFCC's Family Day and Black History Month Celebration in Ajax.	$1,500
Lakeridge Community Support Services	Purchase of inclusive and diverse materials to use for individual and group autism therapies with children and youth, which currently has 104 Ajax residents on list for support.	$1,500
Hubbard Station Apartments	Fund meeting and event costs for inclusive engagement initiatives for the residents of the Hubbard Station Apartments.	$1,200
Rotary Club of Ajax	Towards marketing and promotional materials to increase membership recruitment initiatives.	$1,000

Next Steps for Successful Applicants

Public and Strategic Affairs staff have initiated the development of the Partnership Agreements with each of the approved applicants, including identifying measurable targets and outcomes, and eligible expenses under the grant.

Grants will be processed on an ongoing basis throughout the year as events and initiatives are scheduled to commence.

Public and Strategic Affairs will work with each recipient to ensure the Town is celebrating the investment that has been made through the Ajax Partnership Fund. The goal will be to identify engagement opportunities for members of the public, Town staff and Council, and promote these initiatives as they acheive their milestones throughout the year.

Unsuccessful Applicants

Applicants that were not successful for the 2023 Ajax Partnership Fund have been notified as such, in writing, by staff in Public and Strategic Affairs. They have also been invited to participate in one-on-one debrief meetings and will be encouraged to adapt their proposals to submit for the 2024 Ajax Partnership Fund intake.

Year-End Report

Staff will also bring forward a 2023 Ajax Partnership Fund Wrap-Up presentation to the appropriate Standing Committee of Council to share key outcomes and successes achieved through the 2023 projects.

Next Round of Applications

Staff will launch the next round of the Ajax Partnership Fund for 2024 in August 2023. Specific dates and timelines will be shared with Council and prospective applicants once solidified.

Financial Implications:

The 2023 Ajax Partnership Fund is funded by slot revenues through a Discretionary Reserve that is dedicated to the program, with $250,000 available to be allocated through grants each year. This $250,000 is allocated across four tiers of up to $2,500, up to $5,000, up to $10,000 and up to $100,000.

2023 Allocations by Tier

Tier 1 (up to $2,500)	17
Tier 2 (up to $5,000)	14
Tier 3 (up to $10,000)	4
Tier 4 (up to $100,000)	4
Total Projects	39

The 39 applicants that have been approved for funding will receive a total of $229,700 in grants, with the remaining balance of $20,300 set aside to fund potential in-year partnership asks for the remainder of 2023.

Communication Issues:

The Town will begin ongoing promotion of the successful partnerships throughout the upcoming year using social media and other communications channels.

Members of Council will be invited to participate in cheque presentations or other promotional photo opportunities as part of this program, and will be provided the opportunity to attend or participate in events that are being supported through the Ajax Partnership Fund.

Terms and conditions surrounding public communications, recognition of the Town as a partner and media relations will be outlined in each Partnership Agreement that is completed.

Relationship to the Strategic Plan:

Focus Area: Leading in our Community

Goal: Fostering and strengthening external relationships and partnerships to help achieve strategic goals

Conclusion:

The Ajax Partnership Fund was launched to centralize the Town's corporate giving endeavours. The investment of $229,700 across 39 initiatives outlined in this report reflects the unique and innovative opportunities for partnerships the Town can leverage to enhance the community experience for residents and businesses in Ajax.

Attachments: NA

Prepared by:

Kassandra Cruciano – Senior Advisor, Grants, Partnerships & Strategic Initiatives

Submitted by:

Christie McLardie – Manager of Public & Strategic Affairs

Approved by:

Shane K. Baker – Chief Administrative Officer

Town of Ajax Report

Report To:	Council
Prepared By:	Dianne Valentim, CPA, Director of Finance / Treasurer
Report #:	FIN-2023-01
Subject:	**2023 Financial Sustainability Plan Reserve Policy Updates**
Ward(s):	All
Date of Meeting:	January 23, 2023
Reference:	Financial Sustainability Plan Policies 121 - 123

Recommendation:

That Council approve the FSP policy updates for the following policies:

- FIN-120 – Financial Sustainability Plan
- FIN-121 - Discretionary Reserve Administration
- FIN-122 - Discretionary Stabilization Reserves
- FIN-123 - Discretionary Capital Reserves
- FIN-125 - Discretionary Reserves

Background:

There are currently eleven (11) policies that encapsulate the Town's Financial Sustainability Plan (FSP). Staff review and provide updates to these policies on a periodic basis. An update on some of the policies was done through the FSP Update GGC report in December 2020.

Discussion:

The update to the three policies include the addition of new reserves – three (3) stabilization reserves and one (1) capital reserve, an update to the investment income threshold that is included in the operating budget, and an update to the Spending cap guideline utilized through the capital budget process.

There are two (2) attachments to this report with the updated policies. Attachment one includes a marked up copy or tracked changes document to provide clarity on the changes to the existing policies. Attachment 2 includes the updated policies without any markings.

1. **FIN - #120 – Financial Sustainability Plan**

Scope – policy #125 was added as a new Discretionary Reserve Policy.

2. FIN - #121 – Discretionary Reserve Administration

Allocation of Interest Income - Item 3.1 is being adjusted from the 2015 budget amount of $981,000 to $1,281,100. The Town has been actively investing reserve balances and the additional interest income will be included in the operating budget.

3. FIN - #122 – Discretionary Stabilization Reserves

The *Scope – Item 2.1* is updated to reflect the three (3) new stabilization reserves established by the Town

- Benefits Claims Reserve
- Community Improvement/DC Exemption Reserve
- Public Health Reserve

The policies regarding these reserves are included following item 3.7.

4. FIN - #123 – Discretionary Capital Reserves

Reserves - Item 3.1 has been updated to change the number of capital reserves from twelve (12) to fourteen (14) and the Stormwater Maintenance Reserve and Library Capital Reserve has been added to the list of reserves.

Spending Cap Guideline - Item 3.2 has been updated from 65% to 90%.
It has been difficult in the last few years to meet the spending cap guideline with the decreased funding to the reserves, the growth in the number of Town assets, more expensive assets (and resulting replacement costs) with the inclusion of technology, and inflation. This increase in the spending cap will provide a higher funding threshold while still providing savings for unbudgeted, overbudget and emergency projects that occur throughout the year. A more fulsome review of funding methodologies will be undertaken alongside the asset management plan financing strategy required to be in place by July 1, 2025.

Throughout Policy document– the name Slots has been replaced with Casino Ajax.

Attachment 1 – Policy #123 Discretionary Capital Reserves Revenue Sources and Use in Capital Budget / Long Rang Capital Forecast has been updated with the Stormwater Maintenance Reserve and the new Library Capital Reserve information.

5. FIN - #125 – Discretionary Reserves - NEW

This is a new policy to identify a new reserve that has been set up for the Ajax Partnership Funding Program. This is neither a stabilization nor a capital reserve.

Financial Implications:

n/a

Communication Issues:

The updated policies will be posted on the Town's internal Document Management System.

Relationship to the Strategic Plan:

Investing in our Community – 5. Undertaking key Corporate Reviews and Strategies.

Conclusion:

The policy updates and recommendations contained in this report will ensure that Council's financial decisions retain a long-term focus and continue to meet the changing needs of our community.

Attachments:

ATT-1: Policy #120 – Financial Sustainability Plan - with tracked changes

ATT-2: Policy #121 – Discretionary Reserve Administration – with tracked changes

ATT-3: Policy #122 – Discretionary Reserve Administration – with tracked changes

ATT-4: Policy #123 - Discretionary Capital Reserves – with tracked changes

ATT-5: Policy #120 – Financial Sustainability Plan

ATT-6: Policy #121 – Discretionary Reserve Administration

ATT-7: Policy #122 – Discretionary Stabilization Reserves

ATT-8: Policy #123 – Discretionary Capital Reserves

ATT-9: Policy #125 – Discretionary Reserves

Prepared and Submitted by:

Dianne Valentim, CPA, Director of Finance / Treasurer

Approved by:

Shane Baker – Chief Administrative Officer

CORPORATION OF THE TOWN OF AJAX

CORPORATE POLICIES AND PROCEDURES

SUBJECT: Financial Sustainability Plan

COUNCIL ISSUED: 13/06/20	COUNCIL REVISED: 23 / 01 / 23	AUTHORED BY: Dianne Valentim	REVISION #: 6	Page 1 of 3	POLICY #: 120

1. POLICY OBJECTIVE

1.1 This document outlines the goals and objectives of the Financial Sustainability Plan (the "Plan"), and summarizes the policies, financial planning tools and reporting that comprise the Plan.

1.2 The objective of this policy and the Plan is to:

- Align with the objectives and strategies contained within the strategic plan
- Enhance the Town's short and long term financial strength and sustainability
- Provide a comprehensive framework to guide and assist priority setting and decision making by Council
- Protect and maintain the Town's infrastructure and other capital assets
- Maintain programs and services at their desired levels
- Provide the financial flexibility necessary to leverage future opportunities
- Minimize financial vulnerability during economic downturns
- Maintain a reasonable sharing of the tax burden between current and future taxpayers
- Enable the Town to plan for its growth and intensification in a sustainable way

2. SCOPE

2.1. This policy applies to all long term financial planning decisions made by the Town and those employees and Members of Council responsible for the control, administration or management of the Town's reserve, debt and financing activities as applicable.
2.2. The following financial policies support the stated goals and objectives of the Plan:
2.3. #121 Discretionary Reserve Administration
2.4. #122 Discretionary Stabilization Reserves
2.5. #123 Discretionary Capital Reserves
2.6. #124 Debt Management
2.7. #125 Discretionary Reserves
2.8. #127 Capital Expenditure Control
2.9. #128 Operating Budget Management
2.10. #129 Annual Review of User Fees & Charges
2.11. #130 Investments
2.12. #131 Commodity Price Hedging
2.13. #132 Leasing

3. PROCEDURE

FINANCIAL PLANNING TOOLS

3.1 The Town utilizes the following short and long term financial planning tools:

Annual Operating and Capital Budgets

- Subject to the requirements of the *Municipal Act, 2001*

Multi-Year Operating Budget Forecast

- A multi-year, forecast of items impacting the annual general tax levy requirement
- Includes, but is not limited to:
  - Base Operating Budget, adjusted for growth and annualization of prior year or in-year decisions
  - New Items: Full and Part Time staff plus new and expanded programs/initiatives
  - Other Financial Inputs: Reserve Allocations, Debt Payments, Specific Council Identified Items
- Multi-year forecast information/data may be used by Council to inform, set or confirm the target tax rate for the upcoming budget year

Long Range Capital Forecast (LRCF)

- A multi-year, forecast of the Town's future capital requirements and projected capital funding, that complements the annual capital budget
- Best practices and certain legislation will require a minimum LRCF of 10 years (annual capital budget plus 9-year forecast)
- The LRCF is reviewed and revised each year as part of the annual budget process

Operating Budget Reforecast

- A detailed in-year reforecast of all operating budget revenues and expenditures
- Results in a calculation of the forecast surplus or deficit for the current budget year
- Identifies issues that may need to be addressed in the following year's budget
- The forecast surplus/deficit and details on major variances are reported to Council through a General Government Committee (GGC) report

Operating Budget Year-End Review

- A detailed review of the actual operating results as compared to the annual Operating Budget and to the Operating Budget Reforecast
- Quantifies the final surplus/deficit
- Provides details on major variances and recommended disposition of the surplus and/or funding of a deficit that are reported to Council through a General Government Committee (GGC) report

FINANCIAL REPORTING

3.2 The reporting to Council on the Town's financial activities, including the Plan, is accomplished through General Government Committee reports on:

- Financial Planning Tools identified in Section 3.1 of this policy
- Actual Operating Budget Surplus, including explanations of major variances from budget
- Capital Account Closing Reports
- Annual audited Financial Statements
- Various activities in the areas of financial planning and management, budgets, forecasts

CORPORATION OF THE TOWN OF AJAX

CORPORATE POLICIES AND PROCEDURES

SUBJECT: **DISCRETIONARY RESERVE ADMINSTRATION**

COUNCIL ISSUED: 13/06/20	COUNCIL REVISED: ~~22 / 07 / 12~~23 / 01 / 23	AUTHORED BY: Dianne Valentim	REVISION #: ~~3~~ 4	Page 1 of 3	POLICY #: 121

1. POLICY OBJECTIVE

1.1. Under the authority of Council, reserves and reserve funds are appropriations from the Town's net revenues designated for purposes that may extend beyond the current fiscal year. They are an integral part of the municipal budget planning process and long-term financial sustainability plan that contributes to the municipality's overall financial health.

1.2. The primary purposes of the Town's Capital Reserves are to:

- Provide full or partial funding for projects contained in the Capital Budget/Long Range Capital Forecast at the time the funds are required
- To fund unbudgeted and/or emergency capital projects that occur subsequent to the approval of the budget
- Minimize the cost of capital acquisitions by reducing the amount of debt financing required to execute the capital program

1.3. The primary purposes of the Town's Stabilization Reserves are to:

- Mitigate the impact of variable and uncontrollable factors (growth, interest rates, changes in subsidies) and to ensure adequate and sustainable cash flows
- To provide financing for periodic, one-time or short-term requirements without permanently impacting tax and other rates
- Provide a source of internal financing for future liabilities

1.4. The administration of the reserves includes how funds are directed towards the various stabilization and discretionary reserves.

2. SCOPE

2.1. This policy applies to all of the Town's capital reserves, being reserves maintained by the Town and those employees and Members of Council responsible for the control, administration or management of the Town's financial activities as applicable

3. PROCEDURE

3.1. ALLOCATION OF INTEREST INCOME

- A general levy interest income above ~~$981,000 (2015 budget amount)~~ $1,281,100 (2023 budget amount) may be allocated to Discretionary Capital Reserves
- The reserves that are allocated interest and the method of allocation, shall be in accordance with Finance Department procedures

3.2. ANNUAL INCREASE IN GENERAL LEVY BUDGET ALLOCATIONS

- The total general levy budget allocations to Discretionary Reserves, may increase by a maximum of 25% of the additional taxation revenue generated from Assessment Growth
- The Director of Finance/Treasurer may recommend additional increases for Council's consideration as part of the annual budget

3.3. APPROVAL OF GENERAL LEVY RESERVE ALLOCATIONS

- The general levy budget allocations used to fund the Capital Budget/Long Range Capital Forecast, shall be approved at the same General Government Committee meeting where the Capital Budget/Long Range Capital Forecast is reviewed and recommended to Council for approval.
- These allocations are integral to the funding of the entire Capital Budget/Long Range Capital Forecast and as a result, cannot be changed as part of the Annual Operating Budget review and approval process

3.4. ALLOCATION OF OPERATING BUDGET SURPLUS

- The annual Operating Budget Surplus shall first be allocated to the Stabilization Reserve, in order to increase the reserve to its target balance (refer to Policy #122 Discretionary Stabilization Reserves)
- The remainder of the surplus will be allocated based on recommendation by the Director of Finance/Treasurer
- The recommendations are subject to review and approval by Council, through the General Government Committee report

- Changes to the recommended allocations, if any, will be recorded in the following fiscal year

3.5. **SUPPLEMENTARY TAXES**

- The annual budget for supplementary tax revenue shall not exceed $400,000
- Where actual supplementary tax revenues exceed the budget, the surplus amount form supplementary taxes shall be allocated to the Post Growth Capital Reserve

CORPORATION OF THE TOWN OF AJAX

CORPORATE POLICIES AND PROCEDURES

SUBJECT: ***DISCRETIONARY STABILIZATION RESERVES***

COUNCIL ISSUED: 13 / 06 / 20	COUNCIL REVISED: 23 / 01 / 23	AUTHORED BY: DIANNE VALENTIM	REVISION #: 5	Page 1 of 3	POLICY #: 122

1. POLICY OBJECTIVE

1.1. Under the authority of Council, reserves and reserve funds are appropriations from the Town's net revenues designated for purposes that may extend beyond the current fiscal year. They are an integral part of the municipal budget planning process and long term financial sustainability plan that contributes to the municipality's overall financial health.

1.2. The primary purposes of the Town's Stabilization Reserves are to:

- Mitigate the impact of variable and uncontrollable factors (growth, interest rates, changes in subsidies) and to ensure adequate and sustainable cash flows
- To provide financing for periodic, one-time or short term requirements without permanently impacting tax and other rates
- Provide a source of internal financing for future liabilities

2. SCOPE

2.1. This policy applies to the Election Reserve and the Stabilization Reserve, Benefits Claims Reserve, Community Improvement / DC Exemption Reserve and Public Health Reserve being reserves maintained by the Town and those employees and Members of Council responsible for the control, administration or management of the Town's financial activities as applicable.

3. PROCEDURE

ELECTION RESERVE

3.1. The purpose of the Election Reserve is to fund all costs related to administration of the municipal election every four years, including any annual costs leading up to the election and the full cost of the election itself. In the event there is a by-election funds may also be drawn from this reserve if approved by Council.

3.2. The Elections Reserve receives an allocation from the operating budget, at an amount recommended by the Director of Finance, which is expected to be sufficient to fund the cost of administering the municipal election. If funds are used to administer a by-election, the annual contribution may be increased to achieve the target subject to annual budget deliberations.

3.3. The target reserve balance in the year of the election, shall be equal to the estimated total cost of the election.

STABILIZATION RESERVE

Uses of the Reserve

3.4. In the Annual Budget, the Stabilization Reserve may be used at the discretion of Council to:

- Offset, in full or in part, short-term (less than 2 years) decreased revenues or increased expenditures caused by temporary economic conditions while expenditure reductions or other strategies are being identified and implemented to offset the projected deficit;
- Provide funding for non-recurring emergency operating expenditures and/or uninsured losses arising from extreme weather events, natural disasters or public health emergencies; or
- Provide funding to offset a shortfall in property tax arising from assessment appeal losses expected in the year.

3.5. In Year Post-Budget Approval

- To fully offset an overall annual operating deficit, which would otherwise require a tax rate increase in the subsequent budget year.

Reserve Balance

3.6. The minimum year-end balance of the reserve shall be 5% of the prior year's Net Revenues (as defined and calculated in the Financial Information Return). The maximum balance shall be 15% of the prior year's Net Revenues (as defined and calculated in the Financial Information Return)

3.7. Changes to the reserve balance are subject to the following rules:

- Increases to the balance shall be funded from the annual operating budget surplus
- If the surplus is not sufficient to increase the reserve to its minimum year-end reserve balance, the shortfall will be made up from the following years' budget allocations and/ or following years' surpluses, over a period not exceeding 3 years.
- Should the Net Revenues decrease on a year over year basis, the minimum balance in the reserve shall not be reduced below its year-end reserve balance before the initial decrease.

BENEFITS CLAIMS RESERVE

3.8. This reserve was established upon conversion of the Town's Health Benefits plan from a conventional, fully insured plan to an Administrative Services Only (ASO) plan. The refund received from this conversion was placed in this reserve.

3.9. Any surplus funds from the health and benefits program will be deposited into this reserve.

3.10. There is no target balance for this reserve.

3.11. The Reserve can be used to fund health and benefit expenses in excess of annual

3.12. budgeted amounts.

3.13. The reserve can also fund one-time initiatives or capital costs related to Payroll and HR systems and process improvements.

COMMUNITY IMPROVEMENT / DC EXEMPTION RESERVE

3.14. This reserve receives an allocation from the operating budget, at an amount recommended by the Director of Finance, to fund the cost of the Town's future DC exemption commitments granted through CIP agreements

3.15. Additional funding from non-DC sources may be recommended to be allocated to this reserve by the Director of Finance to address other mandated DC Exemption obligations.

3.16. The target balance for this reserve is based on the estimated future obligations of the Town including, but not limited to, approved CIP agreements or written commitments made by the Town. The target balance is to be reviewed annually during the budget process.

3.16. This reserve will provide funding to the DC reserve funds to offset the contribution of mandated development charges exemptions incurred in a year.

3.17. Should the reserve be completely drawn down in a year where a DC exemption contribution is required and the balance cannot be covered by in-year operating budget surplus, the Treasurer will recommend a funding strategy to mitigate future tax impacts.

PUBLIC HEALTH RESERVE

3.21 This reserve was established with the funds not utilized under the Safe Restart Grant and COVID Recovery Funding received in 2021.

3.18 This reserve can only be utilized to fund COVID related operating expenditures and revenue losses as per the funding agreement.

3.19 This reserve will be dissolved once all of the funds have been utilized by the Town.

CORPORATION OF THE TOWN OF AJAX
CORPORATE POLICIES AND PROCEDURES

SUBJECT: ***DISCRETIONARY CAPITAL RESERVES***

COUNCIL ISSUED: 13 / 07 / 04	COUNCIL REVISED: ~~20 / 12 / 14~~23 / 01 / 23	AUTHORED BY: DIANNE VALENTIM	REVISION #: ~~7~~6	Page 1 of 54	POLICY #: 123

1. POLICY OBJECTIVE

1.1. Under the authority of Council, reserves and reserve funds are appropriations from the Town's net revenues designated for purposes that may extend beyond the current fiscal year. They are an integral part of the municipal budget planning process and long term financial sustainability plan that contributes to the municipality's overall financial health.

1.2. The primary purposes of the Town's Capital Reserves are to:

- Provide full or partial funding for projects contained in the Capital Budget/Long Range Capital Forecast at the time the funds are required
- To fund unbudgeted and/or emergency capital projects that occur subsequent to the approval of the budget
- Minimize the cost of capital acquisitions by reducing the amount of debt financing required to execute the capital program

2. SCOPE

2.1. This policy applies to all of the Town's capital reserves, being reserves maintained by the Town and those employees and Members of Council responsible for the control, administration or management of the Town's financial activities as applicable.

3. PROCEDURE

RESERVES

3.1. The ~~twelve~~ fourteen (1~~2~~4) capital reserves are listed below. Details on the revenue sources and the use of each reserve in the Capital Budget/Long Range Capital Forecast are outlined in
ATT-1.

- Building Maintenance
- Capital Contingency
- CIP Development Improvement
- Debt Reduction (~~Slots~~Casino Ajax)
- Debt Repayment
- Development
- General Infrastructure Maintenance
- Post Growth Capital
- Roads Maintenance

- Strategic Initiatives
- Vehicle/Equipment Replacement
- Risk Mitigation
- Stormwater Maintenance
- Library Capital Reserve

SPENDING CAP GUIDELINE

3.2. An annual spending cap guideline of 90~~65~~% of a reserve's forecast total annual revenues, will be used by staff to guide the funding of the Capital Budget/Long Range Capital Forecast recommended to Council for approval.

- The annual spending cap only applies to the following reserves:
  - Building Maintenance
  - Development
  - General Infrastructure Maintenance
  - Roads Maintenance
  - Strategic Initiatives
  - Vehicle/Equipment Replacement

3.3. The annual spending cap is a guideline only. The actual expenditures in a given budget year may exceed or fall below the cap.

ALLOCATION OF ~~SLOTS~~CASINO AJAX & ~~VERIDIAN~~ELEXICON REVENUES

3.4. Background

- ~~Slots~~Casino Ajax Revenues - the Town's share of the slot and gaming revenue, as calculated according to the Municipality Contribution Agreement with Ontario Lottery and Gaming (OLG).

- Elexicon Revenues – the promissory note interest and dividend income the Town receives from its 21.8% ownership share of Elexicon Corporation.

3.5. ~~Slots~~Casino Ajax and Elexicon revenues shall not be included in the operating budget as revenue to reduce the general tax levy, but shall be allocated to specified Capital Reserves as summarized below:

Reserve Name	~~Slots~~Casino Ajax**	Elexicon
Debt Reduction	25%	N/A
Building Maintenance	10%	20%
Development	25%	20%
General Infrastructure Maintenance	10%	15%

Roads Maintenance	10%	15%
Strategic Initiatives	5%	5%
Vehicle/Equipment Replacement	15%	25%

** Net of ~~grandfathered~~ the funding allocation to the Corporate Giving/Partnership reserve~~grants program and social infrastructure funding~~

ATT-1 POLICY #123 DISCRETIONARY CAPITAL RESERVES
REVENUE SOURCES AND USE IN CAPITAL BUDGET/LONG RANGE CAPITAL FORECAST

Reserve Name	Capital Budget / LRCF Funding	Revenue Source
Building Maintenance*	1) Maintenance/repair/rehabilitation of existing buildings and related facilities, including: ▪ the building itself and all components ▪ surrounding campus (e.g. parking lot, front entrance, grounds, etc.) 2) Renovations to existing buildings	1) Annual budget allocation 2) 10% of ~~Slots~~Casino Ajax revenue 3) 20% of Elexicon revenue 4) Portion of the tax room from the annual debt payments on retired (paid off) long term debt
Capital Contingency	1) Town's portion of cost shared Federal/Provincial capital grant programs 2) Unbudgeted capital expenditures that would not otherwise be funded from one of the other capital reserves	If required, portion of Operating Budget Surplus to "top up" to $2.5M target balance
CIP Development Improvement	Capital projects within Downtown CIP area	1) Proceeds on disposal / sale of land 2) 20% of building permit fees for projects in Downtown CIP area (0% from priority sites)
Debt Reduction (~~Slots~~Casino Ajax)	1) Reduce the amount of long term debt issued 2) Offset the operating budget impact of existing debt payment	25% of ~~Slots~~Casino Ajax revenue
Debt Repayment	Reduce the amount of long term debt issued	Portion of the tax room from the annual debt payments on retired (paid off) long term debt
Development	1) Town's share (Ineligible & Benefit to Existing) of Development Charge projects 2) New Infrastructure not eligible for Development Charge funding 3) Waterfront and Shoreline Improvements	1) Annual budget allocation 2) 25% of ~~Slots~~Casino Ajax revenue 3) 20% of Elexicon revenue
General Infrastructure*	Maintenance/repair/rehabilitation of all other infrastructure not fundable from Building Maintenance Reserve or Roads Maintenance Reserve	1) Annual budget allocation 2) 10% of ~~Slots~~Casino Ajax revenue 3) 15% of Elexicon revenue

ATT-1 POLICY #123 DISCRETIONARY CAPITAL RESERVES
REVENUE SOURCES AND USE IN CAPITAL BUDGET/LONG RANGE CAPITAL FORECAST

Reserve Name	Capital Budget / LRCF Funding	Revenue Source
Post Growth Capital*	Not an active/current funding source	1) Up to 15% of assessment growth 2) Annual surplus of Supplementary Tax revenue in excess of $400,000
Roads Maintenance*	Repair/Maintenance/Rehabilitation of roads and related infrastructure, including but not limited to bridges, streetlights, sidewalks, curbs & gutters, traffic signals, multi-use trails within the road allowance and storm water infrastructure	1) Annual budget allocation 2) 10% of ~~Slots~~Casino Ajax revenue 3) 15% of Elexicon revenue
Strategic Initiatives	1) Master Plan, Studies, Strategies, EA's not fundable from another source 2) Traffic Calming 3) Capital projects resulting from Community Action Plan (e.g. Customer Polling) 4) New Software 5) Acquisition and installation of art in public spaces	1) Annual budget allocation 2) 5% of ~~Slots~~Casino Ajax revenue 3) 5% of Elexicon revenue
Vehicle/Equipment Replacement*	1) Operations - Vehicles and Equipment 2) Fire - SCBA, Bunker Gear, Hose, Auto Extrication, AED 3) Recreation - Fitness, Floor Care Machines 4) Information Technology – Workstations, Hardware, Servers, Software	1) Annual budget allocation 2) Proceeds from sale of used and surplus vehicles / equipment 3) 15% of ~~Slots~~Casino Ajax revenue 4) 25% of Elexicon revenue
Risk Mitigation	Risk management initiatives intended to mitigate against future insurance claims. Such activities may include, but are not limited to infrastructure repairs, maintenance and inspections for slip and fall and general injury prevention, IT initiatives designed to detect and protect against cyber threats, administrative system to manage claims, third party insurance	Surplus payments, dividends, recoveries, or other payments received from the Durham Municipal Insurance Pool or other agency specifically related to risk mitigation or claim settlement

ATT-1 POLICY #123 DISCRETIONARY CAPITAL RESERVES
REVENUE SOURCES AND USE IN CAPITAL BUDGET/LONG RANGE CAPITAL FORECAST

Reserve Name	Capital Budget / LRCF Funding	Revenue Source
Stormwater Maintenance	Maintenance/repair/rehabilitation of all stormwater infrastructure including storm sewers, storm ponds, rain gardens as well as related studies and asset condition assessments. Reserve will also fund maintenance requirements tracked through the stormwater maintenance operating budget.	1) Developer Contributions 2) Stormwater User fee
Library Capital	Used for Library capital projects through Council's budget process or through Council Resolution. 1) For eligible projects, the Library will utilize the Library Capital Reserve first before requesting additional capital funding from other Town reserves (exception – DC funds) 2) Capital expenditures related to facility asset maintenance of the Library branch facilities shall not be funded through this reserve (i.e. roof replacements, HVAC's, boiler replacement)	Per the Library Policy LIB-AP-095, Library annual surplus amounts up to $250,000 annually will be allocated to this reserve. Upset limit of $1,000,000. Once target is reached, any surplus funds not required in other library special projects reserve will be transferred to the Town to be use at their sole discretion.

** Denotes an Asset Management reserve intended primarily for asset repair, rehabilitation and replacement*

CORPORATION OF THE TOWN OF AJAX

CORPORATE POLICIES AND PROCEDURES

SUBJECT: Financial Sustainability Plan

COUNCIL ISSUED: 13/06/20	COUNCIL REVISED: 23 / 01 / 23	AUTHORED BY: Dianne Valentim	REVISION #: 6	Page 1 of 3	POLICY #: 120

1. POLICY OBJECTIVE

1.1 This document outlines the goals and objectives of the Financial Sustainability Plan (the "Plan"), and summarizes the policies, financial planning tools and reporting that comprise the Plan.

1.2 The objective of this policy and the Plan is to:

- Align with the objectives and strategies contained within the strategic plan
- Enhance the Town's short and long term financial strength and sustainability
- Provide a comprehensive framework to guide and assist priority setting and decision making by Council
- Protect and maintain the Town's infrastructure and other capital assets
- Maintain programs and services at their desired levels
- Provide the financial flexibility necessary to leverage future opportunities
- Minimize financial vulnerability during economic downturns
- Maintain a reasonable sharing of the tax burden between current and future taxpayers
- Enable the Town to plan for its growth and intensification in a sustainable way

2. SCOPE

2.1. This policy applies to all long term financial planning decisions made by the Town and those employees and Members of Council responsible for the control, administration or management of the Town's reserve, debt and financing activities as applicable.
2.2. The following financial policies support the stated goals and objectives of the Plan:
2.3. #121 Discretionary Reserve Administration
2.4. #122 Discretionary Stabilization Reserves
2.5. #123 Discretionary Capital Reserves
2.6. #124 Debt Management
2.7. #125 Discretionary Reserves
2.8. #127 Capital Expenditure Control
2.9. #128 Operating Budget Management
2.10. #129 Annual Review of User Fees & Charges
2.11. #130 Investments
2.12. #131 Commodity Price Hedging
2.13. #132 Leasing

3. PROCEDURE

FINANCIAL PLANNING TOOLS

3.1 The Town utilizes the following short and long term financial planning tools:

Annual Operating and Capital Budgets

- Subject to the requirements of the *Municipal Act, 2001*

Multi-Year Operating Budget Forecast

- A multi-year, forecast of items impacting the annual general tax levy requirement
- Includes, but is not limited to:
  - Base Operating Budget, adjusted for growth and annualization of prior year or in-year decisions
  - New Items: Full and Part Time staff plus new and expanded programs/initiatives
  - Other Financial Inputs: Reserve Allocations, Debt Payments, Specific Council Identified Items
- Multi-year forecast information/data may be used by Council to inform, set or confirm the target tax rate for the upcoming budget year

Long Range Capital Forecast (LRCF)

- A multi-year, forecast of the Town's future capital requirements and projected capital funding, that complements the annual capital budget
- Best practices and certain legislation will require a minimum LRCF of 10 years (annual capital budget plus 9-year forecast)
- The LRCF is reviewed and revised each year as part of the annual budget process

Operating Budget Reforecast

- A detailed in-year reforecast of all operating budget revenues and expenditures
- Results in a calculation of the forecast surplus or deficit for the current budget year
- Identifies issues that may need to be addressed in the following year's budget
- The forecast surplus/deficit and details on major variances are reported to Council through a General Government Committee (GGC) report

Operating Budget Year-End Review

- A detailed review of the actual operating results as compared to the annual Operating Budget and to the Operating Budget Reforecast
- Quantifies the final surplus/deficit
- Provides details on major variances and recommended disposition of the surplus and/or funding of a deficit that are reported to Council through a General Government Committee (GGC) report

FINANCIAL REPORTING

3.2 The reporting to Council on the Town's financial activities, including the Plan, is accomplished through General Government Committee reports on:

- Financial Planning Tools identified in Section 3.1 of this policy
- Actual Operating Budget Surplus, including explanations of major variances from budget
- Capital Account Closing Reports
- Annual audited Financial Statements
- Various activities in the areas of financial planning and management, budgets, forecasts

CORPORATION OF THE TOWN OF AJAX

CORPORATE POLICIES AND PROCEDURES

SUBJECT: **DISCRETIONARY RESERVE ADMINSTRATION**

COUNCIL ISSUED: 13/06/20	COUNCIL REVISED: 23 / 01 / 23	AUTHORED BY: Dianne Valentim	REVISION #: 4	Page 1 of 3	POLICY #: 121

1. POLICY OBJECTIVE

1.1. Under the authority of Council, reserves and reserve funds are appropriations from the Town's net revenues designated for purposes that may extend beyond the current fiscal year. They are an integral part of the municipal budget planning process and long-term financial sustainability plan that contributes to the municipality's overall financial health.

1.2. The primary purposes of the Town's Capital Reserves are to:

- Provide full or partial funding for projects contained in the Capital Budget/Long Range Capital Forecast at the time the funds are required
- To fund unbudgeted and/or emergency capital projects that occur subsequent to the approval of the budget
- Minimize the cost of capital acquisitions by reducing the amount of debt financing required to execute the capital program

1.3. The primary purposes of the Town's Stabilization Reserves are to:

- Mitigate the impact of variable and uncontrollable factors (growth, interest rates, changes in subsidies) and to ensure adequate and sustainable cash flows
- To provide financing for periodic, one-time or short-term requirements without permanently impacting tax and other rates
- Provide a source of internal financing for future liabilities

1.4. The administration of the reserves includes how funds are directed towards the various stabilization and discretionary reserves.

2. SCOPE

2.1. This policy applies to all of the Town's capital reserves, being reserves maintained by the Town and those employees and Members of Council responsible for the control, administration or management of the Town's financial activities as applicable

3. PROCEDURE

3.1. **ALLOCATION OF INTEREST INCOME**

- A general levy interest income above $1,281,100 (2023 budget amount) may be allocated to Discretionary Capital Reserves
- The reserves that are allocated interest and the method of allocation, shall be in accordance with Finance Department procedures

3.2. **ANNUAL INCREASE IN GENERAL LEVY BUDGET ALLOCATIONS**

- The total general levy budget allocations to Discretionary Reserves, may increase by a maximum of 25% of the additional taxation revenue generated from Assessment Growth
- The Director of Finance/Treasurer may recommend additional increases for Council's consideration as part of the annual budget

3.3. **APPROVAL OF GENERAL LEVY RESERVE ALLOCATIONS**

- The general levy budget allocations used to fund the Capital Budget/Long Range Capital Forecast, shall be approved at the same General Government Committee meeting where the Capital Budget/Long Range Capital Forecast is reviewed and recommended to Council for approval.
- These allocations are integral to the funding of the entire Capital Budget/Long Range Capital Forecast and as a result, cannot be changed as part of the Annual Operating Budget review and approval process

3.4. **ALLOCATION OF OPERATING BUDGET SURPLUS**

- The annual Operating Budget Surplus shall first be allocated to the Stabilization Reserve, in order to increase the reserve to its target balance (refer to Policy #122 Discretionary Stabilization Reserves)
- The remainder of the surplus will be allocated based on recommendation by the Director of Finance/Treasurer
- The recommendations are subject to review and approval by Council, through the General Government Committee report
- Changes to the recommended allocations, if any, will be recorded in the following fiscal year

3.5. **SUPPLEMENTARY TAXES**

- The annual budget for supplementary tax revenue shall not exceed $400,000
- Where actual supplementary tax revenues exceed the budget, the surplus amount form supplementary taxes shall be allocated to the Post Growth Capital Reserve

CORPORATION OF THE TOWN OF AJAX

CORPORATE POLICIES AND PROCEDURES

SUBJECT: ***DISCRETIONARY STABILIZATION RESERVES***

COUNCIL ISSUED: 13 / 06 / 20	COUNCIL REVISED: 23 / 01 / 23	AUTHORED BY: DIANNE VALENTIM	REVISION #: 5	Page 1 of 3	POLICY #: 122

1. POLICY OBJECTIVE

1.1. Under the authority of Council, reserves and reserve funds are appropriations from the Town's net revenues designated for purposes that may extend beyond the current fiscal year. They are an integral part of the municipal budget planning process and long term financial sustainability plan that contributes to the municipality's overall financial health.

1.2. The primary purposes of the Town's Stabilization Reserves are to:

- Mitigate the impact of variable and uncontrollable factors (growth, interest rates, changes in subsidies) and to ensure adequate and sustainable cash flows
- To provide financing for periodic, one-time or short term requirements without permanently impacting tax and other rates
- Provide a source of internal financing for future liabilities

2. SCOPE

2.1. This policy applies to the Election Reserve and the Stabilization Reserve, Benefits Claims Reserve, Public Health Reserve and Community Improvement / DC Exemption Reserve being reserves maintained by the Town and those employees and Members of Council responsible for the control, administration or management of the Town's financial activities as applicable.

3. PROCEDURE

ELECTION RESERVE

3.1. The purpose of the Election Reserve is to fund all costs related to administration of the municipal election every four years, including any annual costs leading up to the election and the full cost of the election itself. In the event there is a by-election funds may also be drawn from this reserve if approved by Council.

3.2. The Elections Reserve receives an allocation from the operating budget, at an amount recommended by the Director of Finance, which is expected to be sufficient to fund the cost of administering the municipal election. If funds are used to administer a by-election, the annual contribution may be increased to achieve the target subject to annual budget deliberations.

3.3. The target reserve balance in the year of the election, shall be equal to the estimated total cost of the election.

STABILIZATION RESERVE

Uses of the Reserve

3.4. In the Annual Budget, the Stabilization Reserve may be used at the discretion of Council to:

- Offset, in full or in part, short-term (less than 2 years) decreased revenues or increased expenditures caused by temporary economic conditions while expenditure reductions or other strategies are being identified and implemented to offset the projected deficit;
- Provide funding for non-recurring emergency operating expenditures and/or uninsured losses arising from extreme weather events, natural disasters or public health emergencies; or
- Provide funding to offset a shortfall in property tax arising from assessment appeal losses expected in the year.

3.5. In Year Post-Budget Approval

- To fully offset an overall annual operating deficit, which would otherwise require a tax rate increase in the subsequent budget year.

Reserve Balance

3.6. The minimum year-end balance of the reserve shall be 5% of the prior year's Net Revenues (as defined and calculated in the Financial Information Return). The maximum balance shall be 15% of the prior year's Net Revenues (as defined and calculated in the Financial Information Return)

3.7. Changes to the reserve balance are subject to the following rules:

- Increases to the balance shall be funded from the annual operating budget surplus
- If the surplus is not sufficient to increase the reserve to its minimum year-end reserve balance, the shortfall will be made up from the following years' budget allocations and/ or following years' surpluses, over a period not exceeding 3 years.
- Should the Net Revenues decrease on a year over year basis, the minimum balance in the reserve shall not be reduced below its year-end reserve balance before the initial decrease.

BENEFITS CLAIMS RESERVE

3.8. This reserve was established upon conversion of the Town's Health Benefits plan from a conventional, fully insured plan to an Administrative Services Only (ASO) plan. The refund received from this conversion was placed in this reserve.

3.9. Any surplus funds from the health and benefits program will be deposited into this reserve.

3.10. There is no target balance for this reserve.

3.11. The Reserve can be used to fund health and benefit expenses in excess of annual budgeted amounts.

3.12. The reserve can also fund one-time initiatives or capital costs related to Payroll and HR systems and process improvements.

COMMUNITY IMPROVEMENT / DC EXEMPTION RESERVE

3.13. This reserve receives an allocation from the operating budget, at an amount recommended by the Director of Finance, to fund the cost of the Town's future DC exemption commitments granted through CIP agreements

3.14. Additional funding from non-DC sources may be recommended to be allocated to this reserve by the Director of Finance to address other mandated DC Exemption obligations.

3.15. The target balance for this reserve is based on the estimated future obligations of the Town including, but not limited to, approved CIP agreements or written commitments made by the Town. The target balance is to be reviewed annually during the budget process.

3.16. This reserve will provide funding to the DC reserve funds to offset the contribution of mandated development charges exemptions incurred in a year.

3.17. Should the reserve be completely drawn down in a year where a DC exemption contribution is required and the balance cannot be covered by in-year operating budget surplus, the Treasurer will recommend a funding strategy to mitigate future tax impacts.

PUBLIC HEALTH RESERVE

3.21 This reserve was established with the funds not utilized under the Safe Restart Grant and COVID Recovery Funding received in 2021.

3.18 This reserve can only be utilized to fund COVID related operating expenditures and revenue losses as per the funding agreement.

3.19 This reserve will be dissolved once all of the funds have been utilized by the Town.

CORPORATION OF THE TOWN OF AJAX

CORPORATE POLICIES AND PROCEDURES

SUBJECT: ***DISCRETIONARY CAPITAL RESERVES***

COUNCIL ISSUED: 13 / 07 / 04	COUNCIL REVISED: 23 / 01 / 23	AUTHORED BY: DIANNE VALENTIM	REVISION #: 7	Page 1 of 5	POLICY #: 123

1. POLICY OBJECTIVE

1.1. Under the authority of Council, reserves and reserve funds are appropriations from the Town's net revenues designated for purposes that may extend beyond the current fiscal year. They are an integral part of the municipal budget planning process and long term financial sustainability plan that contributes to the municipality's overall financial health.

1.2. The primary purposes of the Town's Capital Reserves are to:

- Provide full or partial funding for projects contained in the Capital Budget/Long Range Capital Forecast at the time the funds are required
- To fund unbudgeted and/or emergency capital projects that occur subsequent to the approval of the budget
- Minimize the cost of capital acquisitions by reducing the amount of debt financing required to execute the capital program

2. SCOPE

2.1. This policy applies to all of the Town's capital reserves, being reserves maintained by the Town and those employees and Members of Council responsible for the control, administration or management of the Town's financial activities as applicable.

3. PROCEDURE

RESERVES

3.1. The fourteen (14) capital reserves are listed below. Details on the revenue sources and the use of each reserve in the Capital Budget/Long Range Capital Forecast are outlined in ATT-1.

- Building Maintenance
- Capital Contingency
- CIP Development Improvement
- Debt Reduction (Casino Ajax)
- Debt Repayment
- Development
- General Infrastructure Maintenance
- Post Growth Capital
- Roads Maintenance
- Strategic Initiatives
- Vehicle/Equipment Replacement
- Risk Mitigation
- Stormwater Maintenance
- Library Capital Reserve

SPENDING CAP GUIDELINE

3.2. An annual spending cap guideline of 90% of a reserve's forecast total annual revenues, will be used by staff to guide the funding of the Capital Budget/Long Range Capital Forecast recommended to Council for approval.

- The annual spending cap only applies to the following reserves:
  - Building Maintenance
  - Development
  - General Infrastructure Maintenance
  - Roads Maintenance
  - Strategic Initiatives
  - Vehicle/Equipment Replacement

3.3. The annual spending cap is a guideline only. The actual expenditures in a given budget year may exceed or fall below the cap.

ALLOCATION OF CASINO AJAX & ELEXICON REVENUES

3.4. Background

- Casino Ajax Revenues - the Town's share of the slot and gaming revenue, as calculated according to the Municipality Contribution Agreement with Ontario Lottery and Gaming (OLG).

- Elexicon Revenues – the promissory note interest and dividend income the Town receives from its 21.8% ownership share of Elexicon Corporation.

3.5. Casino Ajax and Elexicon revenues shall not be included in the operating budget as revenue to reduce the general tax levy, but shall be allocated to specified Capital Reserves as summarized below:

Reserve Name	Casino Ajax**	Elexicon
Debt Reduction	25%	N/A
Building Maintenance	10%	20%
Development	25%	20%
General Infrastructure Maintenance	10%	15%
Roads Maintenance	10%	15%
Strategic Initiatives	5%	5%
Vehicle/Equipment Replacement	15%	25%

** Net of the funding allocation to the Corporate Giving/Partnership reserve

ATT-1 POLICY #123 DISCRETIONARY CAPITAL RESERVES
REVENUE SOURCES AND USE IN CAPITAL BUDGET/LONG RANGE CAPITAL FORECAST

Reserve Name	Capital Budget / LRCF Funding	Revenue Source
Building Maintenance*	1) Maintenance/repair/rehabilitation of existing buildings and related facilities, including: ▪ the building itself and all components ▪ surrounding campus (e.g. parking lot, front entrance, grounds, etc.) 2) Renovations to existing buildings	1) Annual budget allocation 2) 10% of Casino Ajax revenue 3) 20% of Elexicon revenue 4) Portion of the tax room from the annual debt payments on retired (paid off) long term debt
Capital Contingency	1) Town's portion of cost shared Federal/Provincial capital grant programs 2) Unbudgeted capital expenditures that would not otherwise be funded from one of the other capital reserves	If required, portion of Operating Budget Surplus to "top up" to $2.5M target balance
CIP Development Improvement	Capital projects within Downtown CIP area	1) Proceeds on disposal / sale of land 2) 20% of building permit fees for projects in Downtown CIP area (0% from priority sites)
Debt Reduction (Casino Ajax)	1) Reduce the amount of long term debt issued 2) Offset the operating budget impact of existing debt payment	25% of Casino Ajax revenue
Debt Repayment	Reduce the amount of long term debt issued	Portion of the tax room from the annual debt payments on retired (paid off) long term debt
Development	1) Town's share (Ineligible & Benefit to Existing) of Development Charge projects 2) New Infrastructure not eligible for Development Charge funding 3) Waterfront and Shoreline Improvements	1) Annual budget allocation 2) 25% of Casino Ajax revenue 3) 20% of Elexicon revenue
General Infrastructure*	Maintenance/repair/rehabilitation of all other infrastructure not fundable from Building Maintenance Reserve or Roads Maintenance Reserve	1) Annual budget allocation 2) 10% of Casino Ajax revenue 3) 15% of Elexicon revenue

ATT-1 POLICY #123 DISCRETIONARY CAPITAL RESERVES
REVENUE SOURCES AND USE IN CAPITAL BUDGET/LONG RANGE CAPITAL FORECAST

Reserve Name	Capital Budget / LRCF Funding	Revenue Source
Post Growth Capital*	Not an active/current funding source	1) Up to 15% of assessment growth 2) Annual surplus of Supplementary Tax revenue in excess of $400,000
Roads Maintenance*	Repair/Maintenance/Rehabilitation of roads and related infrastructure, including but not limited to bridges, streetlights, sidewalks, curbs & gutters, traffic signals, multi-use trails within the road allowance and storm water infrastructure	1) Annual budget allocation 2) 10% of Casino Ajax revenue 3) 15% of Elexicon revenue
Strategic Initiatives	1) Master Plan, Studies, Strategies, EA's not fundable from another source 2) Traffic Calming 3) Capital projects resulting from Community Action Plan (e.g. Customer Polling) 4) New Software 5) Acquisition and installation of art in public spaces	1) Annual budget allocation 2) 5% of Casino Ajax revenue 3) 5% of Elexicon revenue
Vehicle/Equipment Replacement*	1) Operations - Vehicles and Equipment 2) Fire - SCBA, Bunker Gear, Hose, Auto Extrication, AED 3) Recreation - Fitness, Floor Care Machines 4) Information Technology – Workstations, Hardware, Servers, Software	1) Annual budget allocation 2) Proceeds from sale of used and surplus vehicles / equipment 3) 15% of Casino Ajax revenue 4) 25% of Elexicon revenue
Risk Mitigation	Risk management initiatives intended to mitigate against future insurance claims. Such activities may include, but are not limited to infrastructure repairs, maintenance and inspections for slip and fall and general injury prevention, IT initiatives designed to detect and protect against cyber threats, administrative system to manage claims, third party insurance	Surplus payments, dividends, recoveries, or other payments received from the Durham Municipal Insurance Pool or other agency specifically related to risk mitigation or claim settlement

ATT-1 POLICY #123 DISCRETIONARY CAPITAL RESERVES
REVENUE SOURCES AND USE IN CAPITAL BUDGET/LONG RANGE CAPITAL FORECAST

Reserve Name	Capital Budget / LRCF Funding	Revenue Source
Stormwater Maintenance	Maintenance/repair/rehabilitation of all stormwater infrastructure including storm sewers, storm ponds, rain gardens as well as related studies and asset condition assessments. Reserve will also fund maintenance requirements tracked through the stormwater maintenance operating budget.	1) Developer Contributions 2) Stormwater User fee
Library Capital	Used for Library capital projects through Council's budget process or through Council Resolution. 1) For eligible projects, the Library will utilize the Library Capital Reserve first before requesting additional capital funding from other Town reserves (exception – DC funds) 2) Capital expenditures related to facility asset maintenance of the Library branch facilities shall not be funded through this reserve (i.e. roof replacements, HVAC's, boiler replacement)	Per the Library Policy LIB-AP-095, Library annual surplus amounts up to $250,000 annually will be allocated to this reserve. Upset limit of $1,000,000. Once target is reached, any surplus funds not required in other library special projects reserve will be transferred to the Town to be use at their sole discretion.

** Denotes an Asset Management reserve intended primarily for asset repair, rehabilitation and replacement*

CORPORATION OF THE TOWN OF AJAX

CORPORATE POLICIES AND PROCEDURES

SUBJECT: DISCRETIONARY RESERVES

COUNCIL ISSUED: 2023/01/23	COUNCIL REVISED:	AUTHORED BY: Dianne Valentim	REVISION #:	Page 1 of 2	POLICY #: 125

1. POLICY OBJECTIVE

1.1. Under the authority of Council, reserves and reserve funds are appropriations from the Town's net revenues designated for purposes that may extend beyond the current fiscal year. They are an integral part of the municipal budget planning process and long term financial sustainability plan that contributes to the municipality's overall financial health.

1.2. The primary purposes of the Town's Discretionary Reserves are to:

- To set aside funding for a specific purpose by Council.

2. SCOPE

2.1. This policy applies to all of the Town's discretionary reserves, being reserves maintained by the Town and those employees and Members of Council responsible for the control, administration or management of the Town's financial activities as applicable.

3. PROCEDURE

AJAX PARTNERSHIP RESERVE

3.17. The Ajax Partnerships Reserve is funded at $250,000 per year from Casino Ajax revenues, totaling $1 million across a four-year term of Council.

3.18. The purpose of this reserve is to fund approved grants for programs, services and eligible capital expenditures approved through the Town's Corporate Giving and Partnerships program. At the end of each fiscal year, a draw from the reserve offset the operating impact of any grants or partnerships paid out during the fiscal year.

3.19. Any funds not used in a calendar year shall remain in the reserve for use until the

current term of Council ends. At the end of the four-year term of Council, any remaining funds will be allocated to the Capital reserves in accordance with the approved Casino Ajax allocation split as per section 3.5 of Policy 123 Discretionary Capital Reserve or allocated to one or several Casino Ajax funded capital reserves at the discretion of the Treasurer.

3.20. Total funding allocated to the Operating budget must not exceed the available amount in the reserve. In other words, the reserve cannot go into a deficit position. The funds assigned to the reserve will not accrue interest.

3.21. Policy # xxx

The Corporation of the Town of Ajax
January 23, 2023

Motion

Accelerating Development of Thousands of New Housing Units

Moved by: **Mayor Collier**
Seconded by: **Regional Councillor Crawford**

WHEREAS the Ontario government has recognized that there is a housing crisis and has established a goal to have 1.5 million homes built in the next ten (10) years, and has additionally set a specific target of 17,000 new homes for the Town of Ajax by 2031;

AND WHEREAS on February 11, 2021, Ajax Council supported five (5) Employment Area Conversion Requests to advance residential growth in the Town;

AND WHEREAS these requests were endorsed by Durham Region Council on December 22, 2021 for inclusion within a new Regional Official Plan;

AND WHEREAS up to 4,100 housing units and 50 jobs per hectare could be created through developments proposed in the following Employment Area Conversion Requests:

a) CNR-07 - 8.8 hectares - located at the southeast corner of Salem Road North and Kerrison Drive East,
b) CNR-15 - 2.99 hectares - located at 1401 Harwood Avenue North,
c) CNR-19 - 3.8 hectares - located at 250 Rossland Road East,
d) CNR-20 - 0.69 hectares - located at 650 Beck Crescent, and
e) CNR-33 - 1.11 hectares - located at 1541 Harwood Avenue North;

AND WHEREAS these lands are located within an existing Settlement Area Boundary;

AND WHEREAS the development of these urgently needed housing units could be delayed for years while final approvals are sought;

AND WHEREAS Durham Region's Official Plan process is in question due to changes to the regional planning framework implemented by the More Homes Built Faster Act, 2022;

AND WHEREAS by accelerating the timeline, landowners can take advantage of developing at today's costs and interest rates, while conversely, further delaying the process could put development at risk due to the unknown future rate of inflation;

AND WHEREAS through inclusion in the Durham Region Official Plan process, these parcels have been subject to review and public consultation;

NOW THEREFORE BE IT RESOLVED THAT:

1. Council requests the Minister of Municipal Affairs and Housing enact Minister's Zoning Orders (MZOs) as follows:

    a. CNR-07 to permit a mixed-use development with approximately 2,873 apartment dwelling units and a minimum of 40,000 m² non-residential gross floor area within multiple buildings up to a maximum height of 25 storeys;
    b. CNR-15 to permit a residential development with approximately 150 townhouse dwelling units with a minimum height of 3-storeys;
    c. CNR-19 to permit a mixed-use development with approximately 800 apartment dwelling units and a minimum of 9,300 m² non-residential gross floor area within buildings up to a maximum building height of 25 storeys;
    d. CNR-20 to permit a mixed-use development with approximately 200 apartment dwelling units and a minimum of 5,400 m² non-residential gross floor area within one building with a maximum height of 25 storeys; and
    e. CNR-33 to permit a residential development of between 33 and 77 townhouse dwellings units;

2. Affordable and below market rent options shall be included in the housing mix where feasible;

3. Council requests the Ministry of Municipal Affairs and Housing engage Town of Ajax planning staff to establish site specific development standards incorporating Town of Ajax Official Plan policies and other technical elements to ensure land use compatibility, good urban design, and appropriate project phasing;

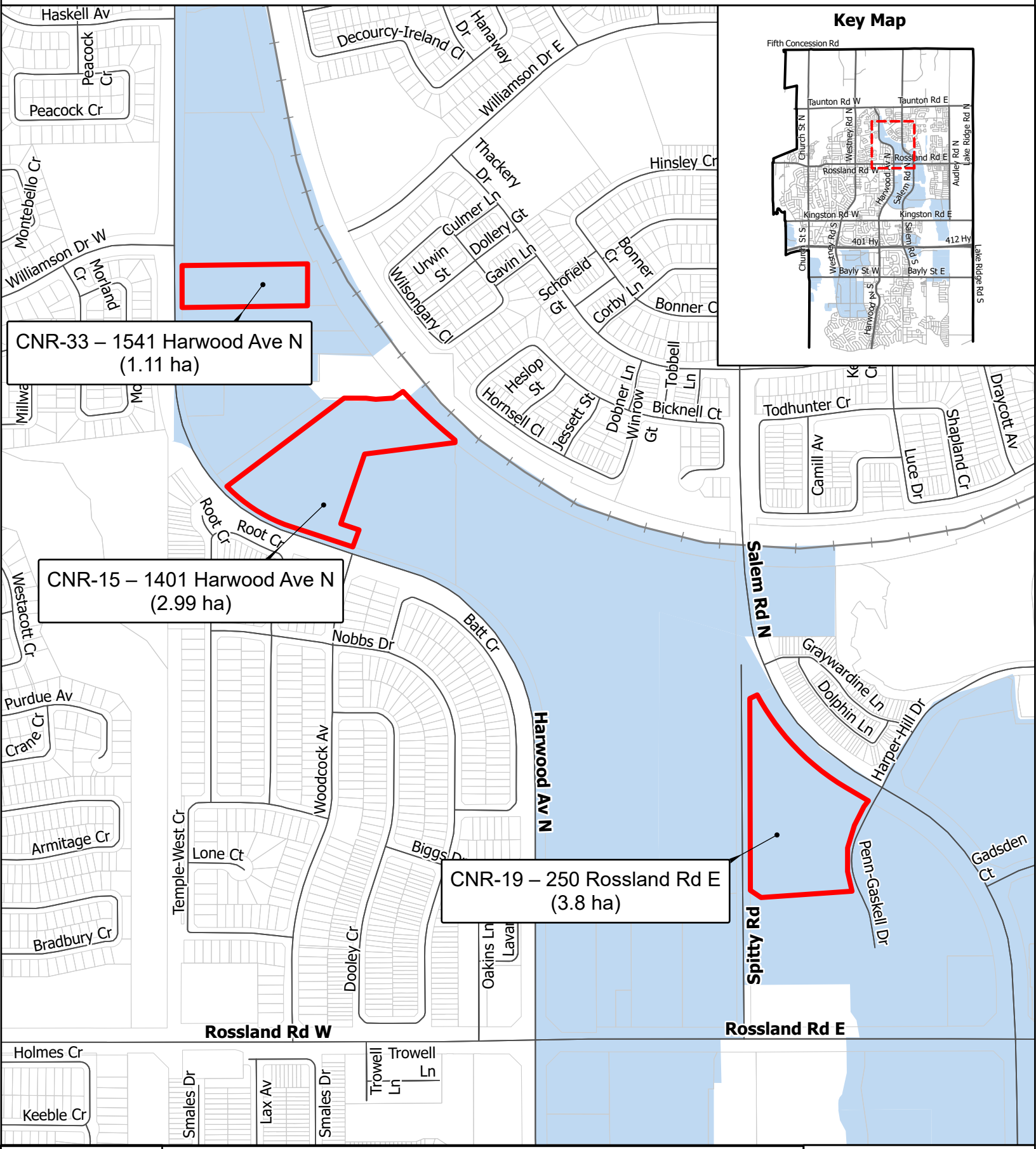
4. Should the negotiation between all parties not achieve the outcomes in clause 1 and 2, that specific MZO request not move forward;

5. Council be empowered to request the revocation of any MZO approved in response to this motion if a site plan application or plan of subdivision application is not submitted within one year of the issuance of the MZO;

6. Staff be directed to deliver a presentation to Council detailing the contents of MZOs issued by the Minister in response to this motion; and

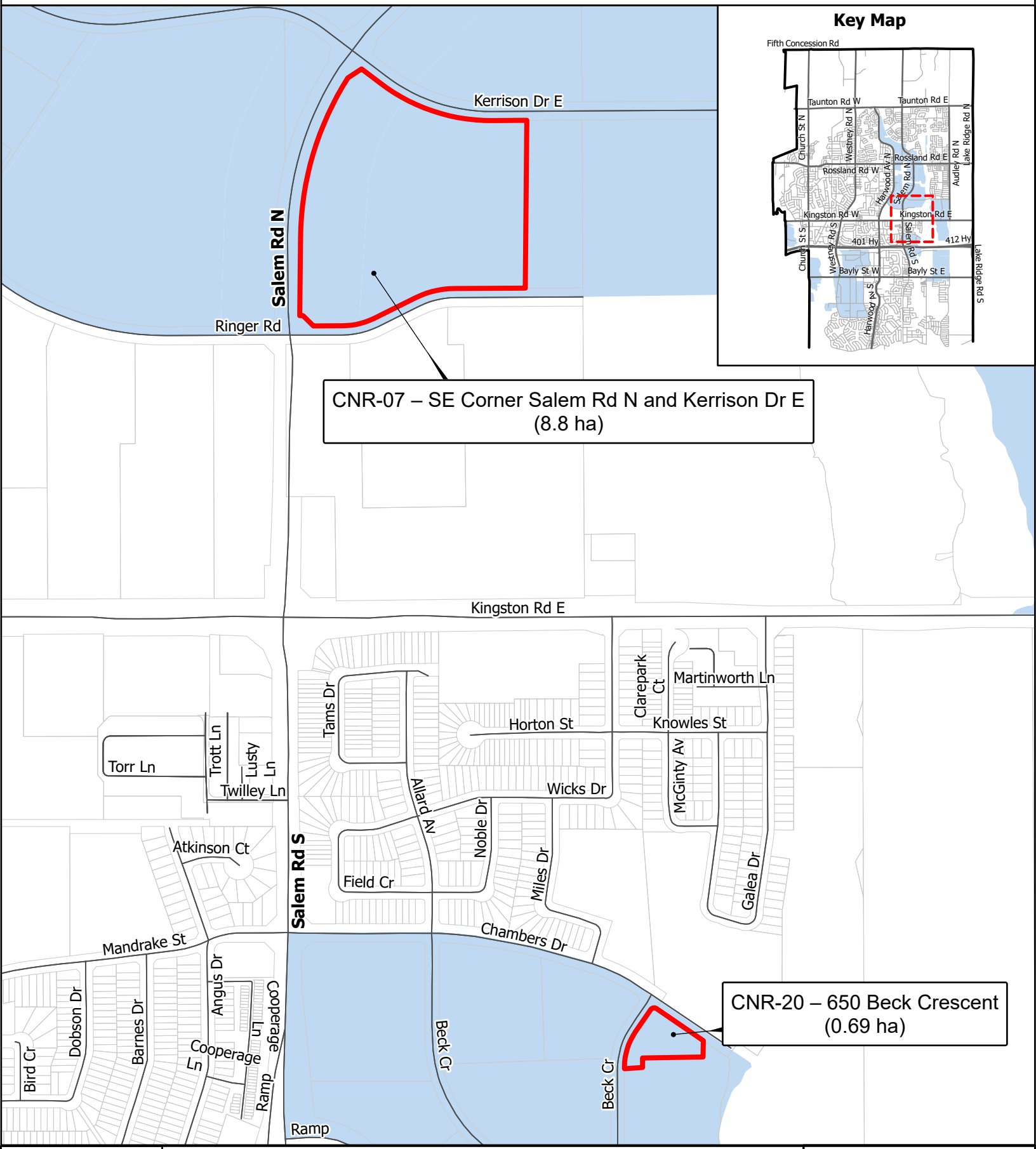
7. This motion be circulated to the Minister of Municipal Affairs and Housing Steve Clark, Ajax MPP Patrice Barnes, and Durham Region Chair John Henry.

Attachment 1 – Ajax Motion – Accelerating development of thousands of new housing units



Sources: Assessment Parcels © MPAC. Single Line Road Network© Regional Municipality of Durham. Other Sources: First Base Solutions, 2022 & Town of Ajax, 2021.

Attachment 1 – Ajax Motion – Accelerating development of thousands of new housing units



Assessment Parcels

Employment Lands

Employment Area Conversion Requests

0 50 100 200 m

N

Sources: Assessment Parcels © MPAC. Single Line Road Network© Regional Municipality of Durham. Other Sources: First Base Solutions, 2022 & Town of Ajax, 2021.

The Corporation of the Town of Ajax
January 23, 2023

Motion

Securing Canada's $1 Billion Investment in a Strengthened Freshwater Action Plan

Moved by: **Mayor Collier**
Seconded by: **Regional Councillor Dies**

WHEREAS the Town of Ajax, as a member of the Great Lakes and St. Lawrence Cities Initiative, supports: protecting source water, planning for climate change impacts and shoreline resilience, ensuring safe and affordable water services for all our residents, and building up a sustainable blue economy in the Great Lakes and St. Lawrence River Basin;

AND WHEREAS ensuring healthy communities and a strong economy for Canadians depend on securing Canada's source water, which includes addressing water quality issues, contaminants and pollution, supporting biodiversity and reversing wetland and fish and wildlife habitat loss and improving community knowledge to empower citizens to safeguard this essential resource;

AND WHEREAS a Freshwater Action Plan and the Great Lakes Protection Initiative it supported were first announced in the 2017 Canadian federal budget with a $44.84 million investment over five years;

AND WHEREAS the Freshwater Action Plan has combined science and action to address priorities in the Great Lakes such as preventing toxic and nuisance algae, enhancing the resilience of coastal wetlands in the Great Lakes, restoring Great Lakes Areas of Concern and supporting Canada's commitments under the Great Lakes Water Quality Agreement, among other priorities;

AND WHEREAS a commitment was made by the Liberal Party of Canada in the 2021 federal election to strengthen the Freshwater Action Plan with an historic investment of $1 billion over ten years to restore and protect large lakes and river systems starting with the Great Lakes and St. Lawrence River Basin;

AND WHEREAS the federal government only committed $19.6 million in funding in the 2022 Budget for the Freshwater Action Plan, falling short of the aforementioned commitment;

AND WHEREAS the United States has invested $1.8 billion in the Great Lakes Restoration Initiative (GLRI) since 2017 and will see accelerated funding with the Infrastructure Investment and Jobs Act;

AND WHEREAS a 2018 University of Michigan study shows that for every dollar of federal spending on GLRI projects between 2010 and 2016, yielded $3.35 in additional economic activity;

AND WHEREAS nearly half of Canada's population lives in the Great Lakes and St. Lawrence River Basin, a region that will continue to see accelerated growth, resulting in greater land and resource use pressures that will further contribute to water availability and quality issues;

AND WHEREAS the Stockholm Resilience Centre recently identified the importance of wetlands as carbon sinks and fresh water's role in climate mitigation;

AND WHEREAS the Great Lakes-St. Lawrence Collaborative outlined 30 recommendations to Environment and Climate Change Canada as part of a ten-year, $2.2 billion Action Plan 2020-2030 to protect the Great Lakes and St. Lawrence (Action Plan 2020-2030), addressing shoreline erosion, outdated infrastructure, invasive species, exposure to toxins and beach contamination, following an 18-month consultation with First Nations, nongovernmental organizations, academics and other experts;

AND WHEREAS the recommendations outlined in Action Plan 2020-2030 should serve as the basis of programming for strengthened federal action in the Great Lakes and St. Lawrence River Basin through its strengthened Freshwater Action Plan;

AND WHEREAS the newly established Canada Water Agency should play a role in accelerating the rollout of funding made available through a strengthened Freshwater Action Plan;

AND WHEREAS Freshwater Action Plan funding should largely be directed to community groups, local governments and First Nations to ensure that investments made will have the biggest local impact and empower action at the local level, rather than being held back for federal administration and operations;

AND WHEREAS it is critical to implement a strengthened Freshwater Action Plan, including accelerating a $1 billion over five years, and to creating a Canada Water Agency to consolidate and coordinate federal water efforts and support provinces and territories in addressing systemic issues impacting the viability of the Great Lakes and St. Lawrence River Basin and the communities dependent upon the region's source water;

NOW THEREFORE BE IT RESOLVED THAT:

1. The Town of Ajax supports the Great Lakes and St. Lawrence Cities Initiative request and requests that the federal government to commit $1 billion in funding over five years for a strengthened Freshwater Action Plan in Budget 2023;

2. The Town of Ajax calls on the federal government to guide its Freshwater Action Plan funding to implement recommendations in the Action Plan 2020-2030;

3. The Town of Ajax calls on the federal government to direct priority funding under the strengthened Freshwater Action Plan to projects in the Great Lakes and St. Lawrence River Basin;

4. The Town of Ajax calls on the federal government to make municipalities eligible for future funding in programs announced under the strengthened Freshwater Action Plan; and

5. A copy of this motion be sent to the federal Deputy Prime-Minister and Minister of Finance; the Minister of Environment and Climate Change; the Parliamentary Secretary to the Minister of Environment and Climate Change (responsible for the Canada Water Agency), Ajax MP Mark Holland, and the Great Lakes and St. Lawrence Cities Initiative.

The Corporation of the Town of Ajax
January 23, 2023

Motion

No Mow May

Moved by: **Councillor Bower**
Seconded by: **Regional Councillor Dies**

WHEREAS "No Mow May" is a campaign launched by the botanical charity Plantlife in 2019 to encourage gardeners to not mow their lawn during the month of May, in order to let wildflowers bloom and provide nectar for pollinators such as bees, butterflies, and beetles;

AND WHEREAS "No Mow May" campaigns have been held across Ontario, including by the City of Cornwall, the Town of East Gwillimbury, and Essa Township;

AND WHEREAS in Canada, there are an estimated 6.2 million lawns that could provide habitat and enhance the abundance and diversity of wildlife including bees and other pollinators by reduced mowing, with the added benefit of reducing costs for property owners through decreased water and gas consumption and fewer GHG emissions associated with a reduction in the use of gas-powered lawn equipment;

AND WHEREAS by returning spaces to a naturalized state, wildlife habitat can be preserved beyond the month of May;

AND WHEREAS Town by-laws allow for spaces to be naturalized by plants and flowers, while requiring grass and weeds be kept below 15 centimetres;

AND WHEREAS the Town of Ajax prides itself as a leader in environmental sustainability by protecting the Greenlands System, establishing vegetation protection zones, and helping pollinators by supporting initiatives that encourage the planting of native trees, shrubs and flowering plants.

NOW THEREFORE BE IT RESOLVED THAT:

1. Operations and Environmental Services staff be directed to identify three areas (one per ward) for naturalization with work to begin in or about the month of May;

2. Corporate Communications staff be directed to raise awareness of naturalization projects being executed by the Town and urge residents to convert some of their property to a more naturalized state using native plants; and

3. Staff be directed to host a webinar in April as part of Ajax Green Living Days to educate residents about using native plants to support biodiversity and minimize water consumption.

The Corporation of the Town of Ajax
January 23, 2023

Motion

Joe Dickson Park

Moved by: **Councillor Henry**
Seconded by: **Regional Councillor Lee**

WHEREAS The Town of Ajax celebrates its history through street and public space naming practices, which identify and highlight legacies important to understanding the foundations of Ajax as a community;

AND WHEREAS Louis Joseph "Joe" Dickson was a committed public servant who began his political career as a Catholic school board trustee and was first elected to Ajax Council in 1983, serving as both a local and regional councillor until 2007;

AND WHEREAS Mr. Dickson went on to represent the riding of Ajax-Pickering in the Ontario legislature from 2007 until 2018;

AND WHEREAS Mr. Dickson was also a passionate businessperson and community advocate, sponsoring more than 1200 sports teams over 55 years;

AND WHEREAS Mr. Dickson passed away on April 6, 2022 at the age of 82, resulting in an outpouring of condolences and stories of remembrance from residents and community stakeholders who knew and respected him;

AND WHEREAS in Summer 2023, an unnamed neighbourhood park within the Mulberry Meadows Subdivision (Sundial Developments) will open at the north-west corner of Ainley Road and Turnerbury Avenue and has been designed as a significant recreation focal point for the local community and will include a junior/senior playground, gazebo, fenced leash-free area, basketball court, fitness equipment, paved walkways, pedestrian seating, and other public amenities;

AND WHEREAS Council deems it appropriate to commemorate Mr. Dickson's dedication and legacy of public service to the Town of Ajax.

NOW THEREFORE BE IT RESOLVED THAT:

1. Staff be directed to name the park at Ainley Road and Turnerbury Avenue the "Joe Dickson Park"; and

2. A copy of this motion be shared with the Dickson family.

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 03-2023

Being a By-Law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its regular meeting of January 23, 2023.

WHEREAS Section 5 (3) of the *Municipal Act, 2001*, as amended, provides that municipal powers shall be exercised by By-law, unless the municipality is specifically authorized to do otherwise;

AND WHEREAS it is deemed expedient and desirable that the proceedings of the Council of the Corporation of the Town of Ajax at this meeting be confirmed and adopted by By-law.

NOW THEREFORE, BE IT ENACTED AND IT IS HEREBY ENACTED as a By-law of the Corporation of the Town of Ajax by the Council thereof as follows:

1. That the actions of the Council at its regular meeting held on the 23rd day of January, 2023 and in respect of each motion, resolution and other action passed and taken by the Council at its said meeting, is, except where the prior approval of the Ontario Land Tribunal or other body is required, hereby adopted, ratified and confirmed as if all such proceedings were expressly embodied in this By-law.

2. That the Head of the Council and proper officers of the Corporation of the Town of Ajax are hereby authorized and directed to do all things necessary to give effect to the said action or to obtain appropriate approvals where required, except where otherwise provided, and to affix the Corporate Seal of the Corporation of the Town of Ajax to all such documents.

READ a first and second time this
Twenty-third day of January, 2023.

READ a third time and passed this
Twenty-third day of January, 2023.

_____
Mayor

_____
D-Clerk